

OFFER TO PURCHASE AND CONTRACT
[Consult "Guidelines" (Form 2G) for guidance in completing this form]

For valuable consideration, the receipt and legal sufficiency of which are hereby acknowledged, Buyer offers to purchase and Seller upon acceptance agrees to sell and convey the Property on the terms and conditions of this Offer To Purchase and Contract and any addendum or modification made in accordance with its terms (together the "Contract").

1. TERMS AND DEFINITIONS: The terms listed below shall have the respective meaning given them as set forth adjacent to each term.

(a) "Seller": Sirva Relocation LLC

(b) "Buyer": Michael Kirchoff

Rachel Miskowiec

(c) "Property": The Property shall include all that real estate described below together with all appurtenances thereto including the improvements located thereon and the fixtures and personal property listed in Paragraphs 2 and 3 below.

The Property ☐ will ☒ will not include a manufactured (mobile) home(s). (If a manufactured home(s) is included, Buyer and Seller should include the Manufactured (Mobile) Home provision in the Additional Provisions Addendum (Standard Form 2A11-T) with this offer.)

Street Address: 17416 SARANITA LN

City: CHARLOTTE

Zip: 28278

County: UNINC

, North Carolina

NOTE: Governmental authority over taxes, zoning, school districts, utilities and mail delivery may differ from address shown.

Legal Description: (Complete ALL applicable)

Plat Reference: Lot/Unit 111, Block/Section _____, Subdivision/Condominium Palisades Montage 3 Ph 2 Map 1, as shown on Plat Book/Slide _____ at Page(s) _____

The PIN/PID or other identification number of the Property is: 217-352-28

Other description: CITY/MUNI/TWP:UNINC L111 M62-22 MAP REF:BK 217 PG 35

Some or all of the Property may be described in Deed Book _____ at Page _____

(d) "Purchase Price": _____

\$ 808,000.00

\$ 5,000.00 0.00

\$ 5,000.00 8,000

\$ _____

\$ _____

\$ _____

\$ _____

\$ 798,000.00 800,000

paid in U.S. Dollars upon the following terms:

BY DUE DILIGENCE FEE made payable and delivered to Seller by the Effective Date by ☒ cash ☐ personal check ☐ official bank check ☒ wire transfer

☐ electronic transfer (specify payment service: _____)

BY INITIAL EARNEST MONEY DEPOSIT made payable and delivered to Escrow Agent named in Paragraph 1(f) by ☒ cash ☐ personal check ☐ official bank check ☒ wire transfer, ☐ electronic transfer within five (5) days of the Effective Date of this Contract.

BY (ADDITIONAL) EARNEST MONEY DEPOSIT made payable and delivered to Escrow Agent named in Paragraph 1(f) no later than 5 p.m. on _____, **TIME BEING OF THE ESSENCE** by ☐ cash ☐ official bank check ☐ wire transfer

☐ electronic transfer

BY ASSUMPTION of the unpaid principal balance and all obligations of Seller on the existing loan(s) secured by a deed of trust on the Property in accordance with the attached Loan Assumption Addendum (Standard Form 2A6-T).

BY SELLER FINANCING in accordance with the attached Seller Financing Addendum (Standard Form 2A5-T).

BY BUILDING DEPOSIT in accordance with the attached New Construction Addendum (Standard Form 2A3-T).

BALANCE of the Purchase Price in cash at Settlement (some or all of which may be paid with the proceeds of a new loan)



This form jointly approved by:
North Carolina Bar Association's Real Property Section
North Carolina Association of REALTORS®, Inc.

Buyer's initials MSK RM

Seller's initials SSIRVA



STANDARD FORM 2-T
Revised 7/2022
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NOTE: If the parties agree that Buyer will pay any fee or deposit described above by electronic or wire transfer, Seller agrees to cooperate in effecting such transfer, including the establishment of any necessary account and providing any necessary information to Buyer, provided, however, Buyer shall be responsible for additional costs, if any, associated with such transfer.

Should Buyer fail to deliver either the Due Diligence Fee or any Initial Earnest Money Deposit by their due dates, or should any check or other funds paid by Buyer be dishonored, for any reason, by the institution upon which the payment is drawn, Buyer shall have one (1) banking day after written notice to deliver cash, official bank check, wire transfer or electronic transfer to the payee. In the event Buyer does not timely deliver the required funds, Seller shall have the right to terminate this Contract upon written notice to Buyer, and Seller shall be entitled to recover the Due Diligence Fee together with all Earnest Money Deposit paid or to be paid in the future. In addition, Seller may be entitled to recover reasonable attorney fees and court costs. See paragraph 23 for a party's right to attorneys' fees incurred in collecting the Earnest Money Deposit or Due Diligence Fee.

(e) **"Earnest Money Deposit":** The Initial Earnest Money Deposit, the Additional Earnest Money Deposit and any other earnest monies paid or required to be paid in connection with this transaction, collectively the "Earnest Money Deposit", shall be deposited promptly and held in escrow by Escrow Agent until Closing, at which time it will be credited to Buyer, or until this Contract is otherwise terminated. In the event: (1) this offer is not accepted; or (2) a condition of any resulting contract is not satisfied, then the Earnest Money Deposit shall be refunded to Buyer. See paragraph 23 for remedies in the event of breach of this Contract.

(f) **"Escrow Agent"** (insert name): NextHome World Class

Buyer and Seller consent to disclosure by the Escrow Agent of any material facts pertaining to the Earnest Money Deposit to the parties to this transaction, their real estate agent(s) and Buyer's lender(s).

NOTE: In the event of a dispute between Seller and Buyer over the disposition of the Earnest Money Deposit held in escrow, a licensed real estate broker ("Broker") is required by state law (and Escrow Agent, if not a Broker, hereby agrees) to retain the Earnest Money Deposit in the Escrow Agent's trust or escrow account until Escrow Agent has obtained a written release from the parties consenting to its disposition or until disbursement is ordered by a court of competent jurisdiction. Alternatively, if a Broker or an attorney licensed to practice law in North Carolina ("Attorney") is holding the Earnest Money Deposit, the Broker or Attorney may deposit the disputed monies with the appropriate clerk of court in accordance with the provisions of N.C.G.S. §93A-12.

THE PARTIES AGREE THAT A REAL ESTATE BROKERAGE FIRM ACTING AS ESCROW AGENT MAY PLACE THE EARNEST MONEY DEPOSIT IN AN INTEREST BEARING TRUST ACCOUNT AND THAT ANY INTEREST EARNED THEREON SHALL BE DISBURSED TO THE ESCROW AGENT MONTHLY IN CONSIDERATION OF THE EXPENSES INCURRED BY MAINTAINING SUCH ACCOUNT AND RECORDS ASSOCIATED THEREWITH.

(g) **"Effective Date":** The date that: (1) the last one of Buyer and Seller has signed or initialed this offer or the final counteroffer, if any, and (2) such signing or initialing is communicated to the party making the offer or counteroffer, as the case may be. The parties acknowledge and agree that the initials lines at the bottom of each page of this Contract are merely evidence of their having reviewed the terms of each page, and that the complete execution of such initials lines shall not be a condition of the effectiveness of this Agreement.

SEE** BELOW- REVISIONS TO ALL DUE DILIGENCE TERMS CONCERNING THIS NC OFFER TO PURCHASE AND CONTRACT

(h) **"Due Diligence":** Buyer's opportunity to investigate the Property and the transaction contemplated by this Contract, including but not necessarily limited to the matters described in Paragraph 4 below, to decide whether Buyer, in Buyer's sole discretion, will proceed with or terminate the transaction.

(i) **"Due Diligence Fee":** A negotiated amount, if any, paid by Buyer to Seller with this Contract for Buyer's right to terminate the Contract for any reason or no reason during the Due Diligence Period. It shall be the property of Seller upon the Effective Date and shall be a credit to Buyer at Closing. The Due Diligence Fee shall be non-refundable except in the event of a material breach of this Contract by Seller, or if this Contract is terminated under Paragraph 23(b) or as otherwise provided in any addendum hereto. Buyer and Seller each expressly waive any right that they may have to deny the right to conduct Due Diligence or to assert any defense as to the enforceability of this Contract based on the absence or alleged insufficiency of any Due Diligence Fee, it being the intent of the parties to create a legally binding contract for the purchase and sale of the Property without regard to the existence or amount of any Due Diligence Fee. See paragraph 23 for a party's right to attorneys' fees incurred in collecting the Due Diligence Fee.

(j) **"Due Diligence Period":** The period beginning on the Effective Date and extending through 5:00 p.m. on April 10, 2023 Per Rider to Sales Agreement, Section 2 TIME BEING OF THE ESSENCE.

****NOTE:** Buyer now acknowledges and agrees that ANY and ALL Buyer Due Diligence, Inspections, Termination Rights, Timelines and Repair Items (all collectively known as, the "Inspection Rights") in conflict with the SIRVA Rider to the Sales Agreement ("Rider") are now considered deleted from Contract and its Addenda, with all such Inspection Rights now solely governed by the Rider to the STANDARD FORM CONTRACT

Buyer's initials MSK RM Seller's initials MSK RM

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(k) **"Settlement"**: The proper execution and delivery to the closing attorney of all documents necessary to complete the transaction contemplated by this Contract, including the deed, settlement statement, deed of trust and other loan or conveyance documents, and the closing attorney's receipt of all funds necessary to complete such transaction.

(l) **"Settlement Date"**: The parties agree that Settlement will take place on ~~April 24, 2022~~ April 21, 2023 (the "Settlement Date"), unless otherwise agreed in writing, at a time and place designated by Buyer.

NOTE: See paragraph 12, **DELAY IN SETTLEMENT/CLOSING** for conditions under which Settlement may be delayed.

(m) **"Closing"**: The completion of the legal process which results in the transfer of title to the Property from Seller to Buyer, which includes the following steps: (1) the Settlement (defined above); (2) the completion of a satisfactory title update to the Property following the Settlement; (3) the closing attorney's receipt of authorization to disburse all necessary funds; and (4) recordation in the appropriate county registry of the deed(s) and deed(s) of trust, if any, which shall take place as soon as reasonably possible for the closing attorney after Settlement. Upon Closing, the proceeds of sale shall be disbursed by the closing attorney in accordance with the settlement statement and the provisions of Chapter 45A of the North Carolina General Statutes. If the title update should reveal unexpected liens, encumbrances or other title defects, or if the closing attorney is not authorized to disburse all necessary funds, then the Closing shall be suspended and the Settlement deemed delayed under Paragraph 12 (Delay in Settlement/Closing).

WARNING: The North Carolina State Bar has determined that the performance of most acts and services required for a closing constitutes the practice of law and must be performed only by an attorney licensed to practice law in North Carolina. State law prohibits unlicensed individuals or firms from rendering legal services or advice. Although non-attorney settlement agents may perform limited services in connection with a closing, they may not perform all the acts and services required to complete a closing. A closing involves significant legal issues that should be handled by an attorney. Accordingly, it is the position of the North Carolina Bar Association and the North Carolina Association of REALTORS® that all buyers should hire an attorney licensed in North Carolina to perform a closing.

(n) **"Special Assessments"**: A charge against the Property by a governmental authority in addition to ad valorem taxes and recurring governmental service fees levied with such taxes, or by an owners' association in addition to any regular assessment (dues), either of which may be a lien against the Property.

NOTE: Buyer's and Seller's respective responsibilities for the payment of Special Assessments are addressed in paragraphs 6(a) and 8(k).

2. FIXTURES AND EXCLUSIONS:

WARNING: THE PARTIES SHOULD NOT ASSUME THAT AN ITEM WILL OR WILL NOT BE INCLUDED IN THE SALE BASED ON AN ORAL OR WRITTEN STATEMENT OR UNDERSTANDING THAT IS NOT A PART OF THIS CONTRACT. BUYER AND SELLER SHOULD BE SPECIFIC WHEN NEGOTIATING WHAT ITEMS WILL BE INCLUDED OR EXCLUDED FROM THE SALE.

(a) **Fixtures Are Included in Purchase Price:** ALL EXISTING FIXTURES ARE INCLUDED IN THE SALE AS PART OF THE PURCHASE PRICE, FREE OF LIENS, UNLESS EXCLUDED IN SUBPARAGRAPHS (d) OR (e).

[THIS SPACE INTENTIONALLY LEFT BLANK]

Buyer's initials MSK RM Seller's initials SSS, KVA

(b) **Specified Items:** Buyer and Seller agree that the following items, if present on the Property on the date of the offer, shall be included in the sale as part of the Purchase Price free of liens, unless excluded in subparagraphs (d) or (e) below. ALL ITEMS LISTED BELOW INCLUDE BOTH TRADITIONAL AND "SMART" VERSIONS AND ANY EXCLUSIVELY DEDICATED, RELATED EQUIPMENT AND/OR REMOTE CONTROL DEVICES.

- Alarm and security systems (attached) for security, fire, smoke, carbon monoxide or other toxins with all related access codes, sensors, cameras, dedicated monitors, hard drives, video recorders, power supplies and cables; doorbells/chimes
- All stoves/ranges/ovens; built-in appliances; attached microwave oven; vent hood
- Antennas; satellite dishes and receivers
- Basketball goals and play equipment (permanently attached or in-ground)
- Ceiling and wall-attached fans; light fixtures (including existing bulbs)
- Fireplace insert; gas logs or starters; attached fireplace screens; wood or coal stoves
- Floor coverings (attached)
- Garage door openers
- Generators that are permanently wired
- Invisible fencing with power supply
- Landscape and outdoor trees and plants (except in moveable containers); raised garden; landscape and foundation lighting; outdoor sound systems; permanent irrigation systems; rain barrels; landscape water features; address markers
- Mailboxes; mounted package and newspaper receptacles
- Mirrors attached to walls, ceilings, cabinets or doors; all bathroom wall mirrors
- Storage shed; utility building
- Swimming pools; spas; hot tubs (excluding inflatable pools, spas, and hot tubs)
- Solar electric and solar water heating systems
- Sump-pumps, radon fans and crawlspace ventilators; de-humidifiers that are permanently wired
- Surface-mounting brackets for television and speakers; recess-mounted speakers; mounted intercom system
- Thermostats
- Water supply equipment, including filters, conditioning and softener systems; re-circulating pumps; well pumps and tanks
- Window/Door blinds and shades, curtain/drapery rods and brackets, door and window screens and combination doors, awnings and storm windows

(c) **Unpairing/deleting data from devices:** Prior to Closing, Seller shall "unpair" any devices that will convey from any personal property devices (hubs, intelligent virtual assistants, mobile devices, vehicles, etc.) with which they are paired, delete personal data from any devices that will convey, and restore all devices to factory default settings unless otherwise agreed. Seller's obligations under this paragraph 2(c) shall survive Closing.

NOTE: ANY FIXTURE OR OTHER ITEM DESCRIBED IN SUBPARAGRAPHS (a) AND (b) THAT WILL NOT BE A PART OF THE SALE SHOULD BE IDENTIFIED IN SUBPARAGRAPHS (d) OR (e), AS APPLICABLE.

(d) **Items Leased or Not Owned:** Any item which is leased or not owned by Seller, such as antennas, satellite dishes and receivers, appliances, and alarm and security systems must be identified here and shall not convey:

In addition, any leased fuel tank identified in paragraph 7(d) shall not convey.

(e) **Other Items That Do Not Convey:** The following items shall not convey (*identify those items to be excluded under subparagraphs (a) and (b)*):

outdoor kitchen

Seller shall repair any damage caused by removal of any items excluded above.

Buyer's initials MSK RM Seller's initials LOSIRVA

3. **PERSONAL PROPERTY:** The following personal property present on the Property on the date of the offer shall be transferred to Buyer at closing at no value: all appliances as seen at showing including refrigerators, washer and dryer and fire pit. refrigerator x CSIRVA

sand box removed please

NOTE: ANY PERSONAL PROPERTY THAT WILL BE A PART OF THE SALE SHOULD BE IDENTIFIED IN THIS PARAGRAPH. Buyer is advised to consult with Buyer's lender to assure that the Personal Property items listed above can be included in this Contract.

4. BUYER'S DUE DILIGENCE PROCESS:

WARNING: BUYER IS STRONGLY ENCOURAGED TO CONDUCT DUE DILIGENCE DURING THE DUE DILIGENCE PERIOD. If Buyer is not satisfied with the results or progress of Buyer's Due Diligence, Buyer should terminate this Contract, PRIOR TO THE EXPIRATION OF THE DUE DILIGENCE PERIOD, unless Buyer can obtain a written extension from Seller. SELLER IS NOT OBLIGATED TO GRANT AN EXTENSION. Although Buyer may continue to investigate the Property following the expiration of the Due Diligence Period, Buyer's failure to deliver a Termination Notice to Seller prior to the expiration of the Due Diligence Period will constitute a waiver by Buyer of any right to terminate this Contract based on any matter relating to Buyer's Due Diligence. Provided however, following the Due Diligence Period, Buyer may still exercise a right to terminate if Seller fails to materially comply with any of Seller's obligations under Paragraph 8 of this Contract or for any other reason permitted under the terms of this Contract or North Carolina law.

(a) **Loan:** Buyer, at Buyer's expense, shall be entitled to pursue qualification for and approval of the Loan if any.

NOTE: There is no loan or appraisal contingency in this Offer To Purchase and Contract. Therefore, Buyer is advised to consult with Buyer's lender prior to signing this offer to assure that the Due Diligence Period allows sufficient time for the loan process and for Buyer's lender to provide Buyer sufficient information to decide whether to proceed with or terminate the transaction.

(b) **Property Investigation:** Buyer or Buyer's agents or representatives, at Buyer's expense, shall be entitled to conduct all desired tests, surveys, appraisals, investigations, examinations and inspections of the Property as Buyer deems appropriate, including but NOT limited to the following:

(i) **Inspections:** Inspections to determine the condition of any improvements on the Property, the presence of unusual drainage conditions or evidence of excessive moisture adversely affecting any improvements on the Property, the presence of asbestos or existing environmental contamination, evidence of wood-destroying insects or damage therefrom, and the presence and level of radon gas on the Property.

(ii) **Review of Documents:** Review of the Declaration of Restrictive Covenants, Bylaws, Articles of Incorporation, Rules and Regulations, and other governing documents of any applicable owners' association and/or subdivision. If the Property is subject to regulation by an owners' association, it is recommended that Buyer review the completed Residential Property and Owners' Association Disclosure Statement provided by Seller prior to signing this offer. It is also recommended that the Buyer determine if the owners' association or its management company charges fees for providing information required by Buyer's lender or confirming restrictive covenant compliance.

(iii) **Insurance:** Investigation of the availability and cost of insurance for the Property.

(iv) **Appraisals:** An appraisal of the Property.

(v) **Survey:** A survey to determine whether the property is suitable for Buyer's intended use and the location of easements, setbacks, property boundaries and other issues which may or may not constitute title defects.

(vi) **Zoning and Governmental Regulation:** Investigation of current or proposed zoning or other governmental regulation that may affect Buyer's intended use of the Property, adjacent land uses, planned or proposed road construction, and school attendance zones.

(vii) **Flood Hazard:** Investigation of potential flood hazards on the Property, and/or any requirement to purchase flood insurance in order to obtain the Loan

(viii) **Utilities and Access:** Availability, quality, and obligations for maintenance of utilities including water, sewer, electric, gas, communication services, stormwater management, and means of access to the Property and amenities.

(ix) **Streets/Roads:** Investigation of the status of the street/road upon which the Property fronts as well as any other street/road used to access the Property, including: (1) whether any street(s)/road(s) are public or private, (2) whether any street(s)/road(s) designated as public are accepted for maintenance by the State of NC or any municipality, or (3) if private or not accepted for public maintenance, the consequences and responsibility for maintenance and the existence, terms and funding of any maintenance agreements.

(x) **Special Assessments:** Investigation of the existence of Special Assessments that may be under consideration by a

Buyer's initials MSK RM Seller's initials CSIRVA

governmental authority or an owners' association.

(c) **Sale/Lease of Existing Property:** As noted in paragraph 5(b), unless otherwise provided in an addendum, this Contract is not conditioned upon the sale/lease or closing of other property owned by Buyer. Therefore, if Buyer must sell or lease other real property in order to qualify for a new loan or to otherwise complete the purchase of the Property, Buyer should seek to close on Buyer's other property prior to the end of the Due Diligence Period or be reasonably satisfied that closing on Buyer's other property will take place prior to the Settlement Date of this Contract.

(d) **Repair/Improvement Negotiations/Agreement:** Buyer acknowledges and understands the following:

- Unless the parties agree otherwise, **THE PROPERTY IS BEING SOLD IN ITS CURRENT CONDITION.**
- Seller may, but is not required to, engage in negotiations for repairs/improvements to the Property.

Buyer is advised to make any repair/improvement requests in sufficient time to allow negotiations to be concluded prior to the expiration of the Due Diligence Period. Any agreement that the parties may reach with respect to repairs/improvements is an addition to this Contract that must be in writing and signed by the parties in accordance with Paragraph 19.

NOTE: See Paragraph 8(c), Access to Property and Paragraph 8(m), Negotiated Repairs/Improvements.

(e) **Buyer's Obligation to Repair Damage:** Buyer shall, at Buyer's expense, promptly repair any damage to the Property resulting from any activities of Buyer and Buyer's agents and contractors, but Buyer shall not be responsible for any damage caused by accepted practices either approved by the N.C. Home Inspector Licensure Board or applicable to any other N.C. licensed professional performing reasonable appraisals, tests, surveys, examinations and inspections of the Property. This repair obligation shall survive any termination of this Contract.

(f) **Indemnity:** Buyer will indemnify and hold Seller harmless from all loss, damage, claims, suits or costs, which shall arise out of any contract, agreement, or injury to any person or property as a result of any activities of Buyer and Buyer's agents and contractors relating to the Property except for any loss, damage, claim, suit or cost arising out of pre-existing conditions of the Property and/or out of Seller's negligence or willful acts or omissions. This indemnity shall survive this Contract and any termination hereof.

(g) **Buyer's Right to Terminate:** Provided that Buyer has delivered any agreed-upon Due Diligence Fee, Buyer shall have the right to terminate this Contract for any reason or no reason, by delivering to Seller written notice of termination (the "Termination Notice") during the Due Diligence Period (or any agreed-upon written extension of the Due Diligence Period), **TIME BEING OF THE ESSENCE**. If Buyer timely delivers the Termination Notice, this Contract shall be terminated and the Earnest Money Deposit shall be refunded to Buyer.

(h) **CLOSING SHALL CONSTITUTE ACCEPTANCE OF THE PROPERTY IN ITS THEN EXISTING CONDITION UNLESS PROVISION IS OTHERWISE MADE IN WRITING.**

5. BUYER REPRESENTATIONS:

(a) Funds to complete purchase:

- ☒ (Check if applicable) Cash. Buyer intends to pay cash in order to purchase the Property and does not intend to obtain a loan or funds from sources other than Buyer's own assets. Verification of cash available for Settlement is ☐ is not ☐ attached.

NOTE: If Buyer does not intend to obtain a new loan(s) and/or funds from sources other than Buyer's own assets, Seller is advised, prior to signing this offer, to obtain documentation from Buyer which demonstrates that Buyer will be able to close on the Property without the necessity of obtaining a loan or funds from sources other than Buyer's own assets.

OR:

☐ (Check if applicable) Loan(s)/Other Funds: Buyer intends to obtain a loan(s) and/or other funds to purchase the Property from the following sources (check all applicable sources):

☐ First Mortgage Loan:

Buyer intends to obtain a first mortgage loan of the following type in order to purchase the Property: ☐ FHA ☐ VA (attach FHA/VA Financing Addendum) ☐ Conventional ☐ USDA ☐ Other type: _____

in the principal amount of _____ plus any financed VA Funding Fee or FHA MIP.

☐ Second Mortgage Loan:

Buyer intends to obtain a second mortgage loan of the following type in order to purchase the Property: _____

☐ Other funds: _____

Buyer's initials MSK RM Seller's initials 6/5/18

Buyer intends to obtain funds from the following other source(s) in order to purchase the Property: _____

NOTE: Buyer's obligations under this Contract are not conditioned upon obtaining any loan(s) or other funds from sources other than Buyer's own assets. Some mortgage loan programs and other programs providing funds for the purchase of property selected by Buyer may impose repair obligations and/or additional conditions or costs upon Seller or Buyer, and more information may be needed.

Material changes with respect to funding the purchase of the Property that affect the terms of the contract are material facts that must be disclosed.

(b) **Other Property:** Buyer ☐ DOES ☒ DOES NOT have to sell or lease other real property in order to qualify for a new loan or to complete the purchase. *(Complete the following only if Buyer DOES have to sell or lease other real property:)*

Other Property Address: _____

☐ *(Check if applicable)* Buyer's other property IS under contract as of the date of this offer, and a copy of the contract has either been previously provided to Seller or accompanies this offer. *(Buyer may mark out any confidential information, such as the purchase price and the buyer's identity, prior to providing a copy of the contract to Seller.)* Failure to provide a copy of the contract shall not prevent this offer from becoming a binding contract; however, SELLER IS STRONGLY ENCOURAGED TO OBTAIN AND REVIEW THE CONTRACT ON BUYER'S PROPERTY PRIOR TO ACCEPTING THIS OFFER.

☐ *(Check if applicable)* Buyer's other property IS NOT under contract as of the date of this offer. Buyer's property *(check only ONE of the following options):*

- ☐ is listed with and actively marketed by a licensed real estate broker.
- ☐ will be listed with and actively marketed by a licensed real estate broker.
- ☐ Buyer is attempting to sell/lease the Buyer's Property without the assistance of a licensed real estate broker.

NOTE: This Contract is NOT conditioned upon the sale/lease or closing of Buyer's other property. If the parties agree to make this Contract conditioned on a sale/lease or closing of Buyer's other property, an appropriate contingency addendum should be drafted by a North Carolina real estate attorney and added to this Contract.

(c) **Performance of Buyer's Financial Obligations:** To the best of Buyer's knowledge, there are no other circumstances or conditions existing as of the date of this offer that would prohibit Buyer from performing Buyer's financial obligations in accordance with this Contract, except as may be specifically set forth herein.

(d) **Residential Property and Owners' Association Disclosure Statement** *(check only one):*

- ☐ Buyer has received a signed copy of the N.C. Residential Property and Owners' Association Disclosure Statement prior to making this offer and acknowledges compliance with N.C.G.S. 47E-5 (Residential Property Disclosure Act).
- ☐ Buyer has NOT received a signed copy of the N.C. Residential Property and Owners' Association Disclosure Statement prior to making this offer and shall have the right to terminate or withdraw this Contract without penalty (including a refund of any Due Diligence Fee) prior to WHICHEVER OF THE FOLLOWING EVENTS OCCURS FIRST: (1) the end of the third calendar day following receipt of the Disclosure Statement; (2) the end of the third calendar day following the Effective Date; or (3) Settlement or occupancy by Buyer in the case of a sale or exchange.
- ☒ Exempt from N.C. Residential Property and Owners' Association Disclosure Statement because (SEE GUIDELINES): Sirva disclosures included

(e) **Mineral and Oil and Gas Rights Mandatory Disclosure Statement** *(check only one):*

- ☒ Buyer has received a signed copy of the N.C. Mineral and Oil and Gas Rights Mandatory Disclosure Statement prior to making this offer and acknowledges compliance with N.C.G.S. 47E-5 (Residential Property Disclosure Act).
- ☐ Buyer has NOT received a signed copy of the N.C. Mineral and Oil and Gas Rights Mandatory Disclosure Statement prior to making this offer and shall have the right to terminate or withdraw this Contract without penalty (including a refund of any Due Diligence Fee) prior to WHICHEVER OF THE FOLLOWING EVENTS OCCURS FIRST: (1) the end of the third calendar day following receipt of the Disclosure Statement; (2) the end of the third calendar day following the Effective Date; or (3) Settlement or occupancy by Buyer in the case of a sale or exchange.
- ☐ Exempt from N.C. Mineral and Oil and Gas Rights Mandatory Disclosure Statement because (SEE GUIDELINES): _____

Buyer's initials

MSK RM

Seller's initials

4/26/2022

Buyer's receipt of a Mineral and Oil and Gas Rights Mandatory Disclosure Statement does not modify or limit the obligations of Seller under Paragraph 8(g) of this Contract and shall not constitute the assumption or approval by Buyer of any severance of mineral and/or oil and gas rights, except as may be assumed or specifically approved by Buyer in writing.

NOTE: The parties are advised to consult with a NC attorney prior to signing this Contract if severance of mineral and/or oil and gas rights has occurred

6. BUYER OBLIGATIONS:

(a) **Responsibility for Special Assessments:** Buyer shall take title subject to all Special Assessments that may be approved following Settlement.

(b) **Responsibility for Certain Costs:** Buyer shall be responsible for all costs with respect to:

- (i) any loan obtained by Buyer;
- (ii) charges by an owners' association or a management company/vendor as agent of the association under paragraph 9(b) of this Contract;
- (iii) appraisal;
- (iv) title search;
- (v) title insurance;
- (vi) any fees charged by the closing attorney for the preparation of the Closing Disclosure, Seller Disclosure and any other settlement statement;
- (vii) recording the deed; and
- (viii) preparation and recording of all instruments required to secure the balance of the Purchase Price unpaid at Settlement.

(c) **Authorization to Disclose Information:** Buyer authorizes the Buyer's lender(s), the parties' real estate agent(s) and closing attorney: (1) to provide this Contract to any appraiser employed by Buyer or by Buyer's lender(s); and (2) to release and disclose any buyer's closing disclosure, settlement statement and/or disbursement summary, or any information therein, to the parties to this transaction, their real estate agent(s) and Buyer's lender(s).

7. SELLER REPRESENTATIONS:

(a) **Ownership:** Seller represents that Seller:

- ☒ has owned the Property for at least one year.
- ☐ has owned the Property for less than one year.
- ☐ does not yet own the Property.

(b) **Lead-Based Paint** (check if applicable):

☐ The Property is residential and was built prior to 1978 (Attach Lead-Based Paint or Lead-Based Paint Hazards Disclosure Addendum {Standard Form 2A9-T}).

(c) **Owners' Association(s) and Dues:** Seller authorizes and directs any owners' association, any management company of the owners' association, any insurance company and any attorney who has previously represented the Seller to release to Buyer, Buyer's agents, representative, closing attorney or lender true and accurate copies of the following items affecting the Property, including any amendments:

- Seller's statement of account
- master insurance policy showing the coverage provided and the deductible amount
- Declaration and Restrictive Covenants
- Rules and Regulations
- Articles of Incorporation
- Bylaws of the owners' association
- current financial statement and budget of the owners' association
- parking restrictions and information
- architectural guidelines

☒ (specify name of association): CAMS. The Palisades whose regular assessments ("dues") are \$455 per quarter. The name, address and telephone number of the president of the owners' association or the association manager is: _____

☐ email@camsmgt.com

Owners' association website address, if any: _____

☐ (specify name of association): _____ whose regular assessments ("dues") are \$ _____ per _____. The name, address and telephone number of the president of the owners' association or the association manager is: _____

Buyer's initials

DS
MSK

Seller's initials

DS
RM

Owners' association website address, if any _____

(d) **Fuel Tank(s)/Fuel:** To the best of Seller's knowledge, there ☐ is ☒ is not a fuel tank(s) located on the Property. *If "yes" complete the following:*

(i) Description:

□ Tank 1:

- Use: ☐ currently in use ☐ currently NOT in use
- Ownership: ☐ owned ☐ leased. If leased, name and contact information of tank lessor: _____

- Location: ☐ above ground ☐ below ground
- Type of fuel: ☐ oil ☐ propane ☐ gasoline and/or diesel ☐ other: _____
- Name and contact information of fuel vendor: _____

❑ Tank 2:

- Use: ☐ currently in use ☐ currently NOT in use
- Ownership: ☐ owned ☐ leased. If leased, name and contact information of tank lessor: _____

- Location: ☐ above ground ☐ below ground
- Type of fuel: ☐ oil ☐ propane ☐ gasoline and/or diesel ☐ other: _____
- Name and contact information of fuel vendor: _____

(ii) **Tank(s) included in sale:** Buyer and Seller agree that any tank described above that is owned by Seller shall be included in the sale as part of the Purchase Price free of liens, unless excluded in paragraph 2(e) above.

(iii) **Fuel:** Seller may use fuel in the tank(s) described above through Settlement, but may not otherwise remove the fuel or resell it. Any fuel remaining in the tank(s) as of Settlement shall be included in the sale as part of the Purchase Price, free of liens.

- Seller's use of fuel in any fuel tank is subject to Seller's obligation under Paragraph 8(c) to provide working, existing utilities through the earlier of Closing or possession by Buyer.

NOTE: Buyer shall be entitled to conduct inspections to confirm the existence, type and ownership of any fuel tank located on the Property. Buyer is advised to consult with the owner of any leased fuel tank regarding the terms under which Buyer may lease the tank and obtain fuel.

NOTE: State law provides that it is unlawful for any person, other than the supplier or the owner of a fuel supply tank, to disconnect, interrupt or fill the supply tank with liquefied petroleum gas (LP gas or propane) without the consent of the supplier.

8. SELLER OBLIGATIONS:

(a) Evidence of Title, Payoff Statement(s) and Non Foreign Status:

(i) Seller agrees to use best efforts to provide to the closing attorney as soon as reasonably possible after the Effective Date, copies of all title information in possession of or available to Seller, including but not limited to: title insurance policies, attorney's opinions on title, surveys, covenants, deeds, notes and deeds of trust, leases, and easements relating to the Property.

(ii) Seller shall provide to the closing attorney all information needed to obtain a written payoff statement from any lender(s) regarding any security interest in the Property as soon as reasonably possible after the Effective Date, and Seller designates the closing attorney as Seller's agent with express authority to request and obtain on Seller's behalf payoff statements and/or short-pay statements from any such lender(s).

(iii) If Seller is not a foreign person as defined by the Foreign Investment in Real Property Tax Act, Seller shall also provide to the closing attorney a non-foreign status affidavit (pursuant to the Foreign Investment in Real Property Tax Act). In the event Seller shall not provide a non-foreign status affidavit, Seller acknowledges that there may be withholding as provided by the Internal Revenue Code.

(b) Authorization to Disclose Information: Seller authorizes: (i) any attorney presently or previously representing Seller to release and disclose any title insurance policy in such attorney's file to Buyer and both Buyer's and Seller's agents and attorneys; (ii) the Property's title insurer or its agent to release and disclose all materials in the Property's title insurer's (or title insurer's agent's) file to

Buyer and both Buyer's and Seller's agents and attorneys and (iii) the closing attorney to release and disclose any seller's closing disclosure, settlement statement and/or disbursement summary, or any information therein, to the parties to this transaction, their real estate agent(s) and Buyer's lender(s).

(c) **Access to Property:** Seller shall provide reasonable access to the Property through the earlier of Closing or possession by Buyer, including, but not limited to, allowing Buyer and/or Buyer's agents or representatives, an opportunity to (i) conduct Due Diligence, (ii) verify the satisfactory completion of negotiated repairs/improvements, and (iii) conduct a final walk-through inspection of the Property. Seller's obligation includes providing existing utilities operating at Seller's cost, including any connections and de-winterizing.

NOTE: See WARNING in paragraph 4 above for limitation on Buyer's right to terminate this Contract as a result of Buyer's continued investigation of the Property following the expiration of the Due Diligence Period.

(d) **Removal of Seller's Property:** Seller shall remove, by the date possession is made available to Buyer, all personal property which is not a part of the purchase and all garbage and debris from the Property.

(e) **Affidavit and Indemnification Agreement:** Seller shall furnish at Settlement an affidavit(s) and indemnification agreement(s) in form satisfactory to Buyer and Buyer's title insurer, if any, executed by Seller and any person or entity who has performed or furnished labor, services, materials or rental equipment to the Property within 120 days prior to the date of Settlement and who may be entitled to claim a lien against the Property as described in N.C.G.S. §44A-8 verifying that each such person or entity has been paid in full and agreeing to indemnify Buyer, Buyer's lender(s) and Buyer's title insurer against all loss from any cause or claim arising therefrom.

(f) **Designation of Lien Agent, Payment and Satisfaction of Liens:** If required by N.C.G.S. §44A-11.1, Seller shall have designated a Lien Agent, and Seller shall deliver to Buyer as soon as reasonably possible a copy of the appointment of Lien Agent. All deeds of trust, deferred ad valorem taxes, liens and other charges against the Property, not assumed by Buyer, must be paid and satisfied by Seller prior to or at Settlement such that cancellation may be promptly obtained following Closing. Seller shall remain obligated to obtain any such cancellations following Closing.

(g) **Good Title, Legal Access:** Seller shall execute and deliver a GENERAL WARRANTY DEED for the Property in recordable form no later than Settlement, which shall convey fee simple marketable and insurable title, without exception for mechanics' liens, and free of any other liens, encumbrances or defects, including those which would be revealed by a current and accurate survey of the Property, except: ad valorem taxes for the current year (prorated through the date of Settlement); utility easements and unviolated covenants, conditions or restrictions that do not materially affect the value of the Property; and such other liens, encumbrances or defects as may be assumed or specifically approved by Buyer in writing. The Property must have legal access to a public right of way.

NOTE: Buyer's failure to conduct a survey or examine title of the Property, prior to the expiration of the Due Diligence Period does not relieve the Seller of their obligation to deliver good title under this paragraph.

NOTE: If any sale of the Property may be a "short sale," consideration should be given to attaching a Short Sale Addendum (Standard Form 2A14-T) as an addendum to this Contract.

(h) **Deed, Taxes and Fees:** Seller shall pay for preparation of a deed and all other documents necessary to perform Seller's obligations under this Contract, and for state and county excise taxes, and any deferred, discounted or rollback taxes, and local conveyance fees required by law. The deed is to be made to: Michael S. Kirchoff, Rachel Miskowiec
joint tenants with right of survivorship (not married)

(i) **Agreement to Pay Buyer Expenses:** Seller shall pay at Settlement \$ 0 toward any of Buyer's expenses associated with the purchase of the Property, at the discretion of Buyer and/or lender, if any, including any FHA/VA lender and inspection costs that Buyer is not permitted to pay.

NOTE: Parties should review the FHA/VA Addendum prior to entering an amount in Paragraph 8(i). Certain FHA/VA lender and inspection costs CANNOT be paid by Buyer at Settlement and the amount of these should be included in the blank above.

(j) **Owners' Association Fees/Charges:** Seller shall pay any charges by an owners' association or a management company/vendor as agent of the association under paragraph 9(a) of this Contract.

(k) **Payment of Special Assessments:** Seller shall pay, in full at Settlement, all Special Assessments that are approved prior to Settlement, whether payable in a lump sum or future installments, provided that the amount thereof can be reasonably determined or estimated. The payment of such estimated amount shall be the final payment between the Parties.

Buyer's initials

MSK

Seller's initials

MSK

(l) **Late Listing Penalties:** All property tax late listing penalties, if any, shall be paid by Seller.

(m) **Negotiated Repairs/Improvements:** Negotiated repairs/improvements shall be made in a good and workmanlike manner and Buyer shall have the right to verify same prior to Settlement.

(n) **Home Warranty (Select one of the following):**

☒ No home warranty is to be provided by Seller.

☐ Buyer may obtain a one-year home warranty at a cost not to exceed \$ _____ which includes sales tax and Seller agrees to pay for it at Settlement.

☐ Seller has obtained and will provide a one-year home warranty from _____ at a cost of \$ _____ which includes sales tax and will pay for it at Settlement.

NOTE: Home warranties typically have limitations on and conditions to coverage. Refer specific questions to the home warranty company.

(o) **Seller's Breach of Contract:** See paragraph 23 for Buyer's remedies in the event of breach of this Contract.

9. CHARGES BY OWNERS' ASSOCIATION: Responsibility for payment of charges by an owners' association or a management company/vendor as agent of the association shall be allocated between Buyer and Seller as follows:

(a) **Seller shall pay:**

(i) fees incurred by Seller in completing the Residential Property and Owners' Association Disclosure Statement, and resale or other certificates related to a proposed sale of the Property;

(ii) fees required for confirming Seller's account payment information on owners' association dues or assessments for payment or proration, including any expedite fee permitted under N.C. Gen. Stat. § 47F-3-102 that is charged in connection with providing such information;

(iii) any fees charged for transferring or updating ownership records of the association; and

(iv) any fees other than those fees specifically required to be paid by Buyer under paragraph 9(b) below.

(b) **Buyer shall pay:**

(i) charges for providing information required by Buyer's lender;

(ii) charges for working capital contributions, membership fees, or charges imposed for Buyer's use of the common elements and/or services provided to Buyer in connection with Buyer taking possession of the Property, such as "move-in fees"; and

(iii) charges for determining restrictive covenant compliance.

10. PRORATIONS AND ADJUSTMENTS: Unless otherwise agreed, the following items shall be prorated, with Seller responsible for the prorated amounts of any taxes and dues through the date of Settlement, and Seller entitled to the amount of prorated rents through the date of Settlement, and either adjusted between the parties or paid at Settlement:

(a) **Taxes on Real Property:** Ad valorem taxes and recurring governmental service fees levied with such taxes on real property shall be prorated on a calendar year basis;

(b) **Taxes on Personal Property:** Ad valorem taxes on personal property for the entire year shall be paid by Seller unless the personal property is conveyed to Buyer, in which case, the personal property taxes shall be prorated on a calendar year basis;

(c) **Rents:** Rents, if any, for the Property;

(d) **Dues:** Owners' association regular assessments (dues) and other like charges.

11. CONDITION OF PROPERTY/RISK OF LOSS:

(a) **Condition of Property at Settlement:** If the Property is not in substantially the same or better condition at Closing as on the date of this offer, reasonable wear and tear excepted, Buyer may terminate this Contract by written notice delivered to Seller and the Due Diligence Fee and Earnest Money Deposit shall be refunded to Buyer. If the Property is not in such condition and Buyer does NOT elect to terminate this Contract, Buyer shall be entitled to receive, in addition to the Property, the proceeds of any insurance claim filed by Seller on account of any damage or destruction to the Property.

(b) **Risk of Loss:** The risk of loss or damage by fire or other casualty prior to Closing shall be upon Seller. Seller is advised not to cancel existing insurance on the Property until after confirming recordation of the deed.

Buyer's initials MSK Seller's initials SGS/RVA

12. DELAY IN SETTLEMENT/CLOSING: This paragraph shall apply if one party is ready, willing and able to complete Settlement on the Settlement Date ("Non-Delaying Party") but it is not possible for the other party to complete Settlement by the Settlement Date ("Delaying Party"). In such event, the Delaying Party shall be entitled to a delay in Settlement and shall give as much notice as possible to the Non-Delaying Party and closing attorney. If the Delaying Party fails to complete Settlement and Closing within ~~seven (7)~~ ⁰ days of the Settlement Date (including any amended Settlement Date agreed to in writing by the parties), then the Delaying Party shall be in breach and the Non-Delaying Party may terminate this Contract and shall be entitled to enforce any remedies available to such party under this Contract for the breach.

13. POSSESSION: Possession, including all means of access to the Property (keys, codes including security codes, garage door openers, electronic devices, etc.), shall be delivered upon Closing as defined in Paragraph 1(m) unless otherwise provided below:

- ☐ A Buyer Possession Before Closing Agreement is attached (Standard Form 2A7-T)
- ☐ A Seller Possession After Closing Agreement is attached (Standard Form 2A8-T)
- ☐ Possession is subject to rights of tenant(s)

NOTE: Consider attaching Additional Provisions Addendum (Form 2A11-T) or Vacation Rental Addendum (Form 2A13-T)

14. ADDENDA: CHECK ALL STANDARD ADDENDA THAT MAY BE A PART OF THIS CONTRACT, IF ANY, AND ATTACH HERETO. ITEMIZE ALL OTHER ADDENDA TO THIS CONTRACT, IF ANY, AND ATTACH HERETO.

- | | |
|--|--|
| ☐ Additional Provisions Addendum (Form 2A11-T) | ☐ New Construction Addendum (Form 2A3-T) |
| ☐ Additional Signatures Addendum (Form 3-T) | ☐ Owners' Association Disclosure Addendum (Form 2A12-T) |
| ☐ Back-Up Contract Addendum (Form 2A1-T) | ☐ Seller Financing Addendum (Form 2A5-T) |
| ☐ FHA/VA Financing Addendum (Form 2A4-T) | ☐ Short Sale Addendum (Form 2A14-T) |
| ☐ Lead-Based Paint Or Lead-Based Paint Hazard Addendum (Form 2A9-T) | ☐ Vacation Rental Addendum (Form 2A13-T) |
| ☐ Assumption Addendum (Form 2A6-T) | |

☒ Identify other attorney or party drafted addenda: Sirva Relocation forms Contingent upon Sirva Relocation LLC being able to deliver good and marketable title. Contingent buyer signing Sirva Relo Rider addenda and releases ("addenda"). All SIRVA addenda to be made part of and attached to this agreement upon signature of buyer

NOTE: UNDER NORTH CAROLINA LAW, REAL ESTATE BROKERS ARE NOT PERMITTED TO DRAFT ADDENDA TO THIS CONTRACT.

15. ASSIGNMENTS: This Contract may not be assigned without the written consent of all parties except in connection with a tax-deferred exchange, but if assigned by agreement, then this Contract shall be binding on the assignee and assignee's heirs and successors.

16. TAX-DEFERRED EXCHANGE: In the event Buyer or Seller desires to effect a tax-deferred exchange in connection with the conveyance of the Property, Buyer and Seller agree to cooperate in effecting such exchange; provided, however, that the exchanging party shall be responsible for all additional costs associated with such exchange, and provided further, that a non-exchanging party shall not assume any additional liability with respect to such tax-deferred exchange. Buyer and Seller shall execute such additional documents, including assignment of this Contract in connection therewith, at no cost to the non-exchanging party, as shall be required to give effect to this provision.

17. PARTIES: This Contract shall be binding upon and shall inure to the benefit of Buyer and Seller and their respective heirs, successors and assigns. As used herein, words in the singular include the plural and the masculine includes the feminine and neuter genders, as appropriate.

18. SURVIVAL: ~~If any provision herein contained which by its nature and effect is required to be observed, kept or performed after the Closing, it shall survive the Closing and remain binding upon and for the benefit of the parties hereto until fully observed, kept or performed.~~

19. ENTIRE AGREEMENT: This Contract contains the entire agreement of the parties and there are no representations, inducements or other provisions other than those expressed herein. All changes, additions or deletions hereto must be in writing and signed by all parties. Nothing contained herein shall alter any agreement between a REALTOR® or broker and Seller or Buyer as contained in any listing agreement, buyer agency agreement, or any other agency agreement between them.

20. CONDUCT OF TRANSACTION: The parties agree that any action between them relating to the transaction contemplated by this Contract may be conducted by electronic means, including the signing of this Contract by one or more of them and any notice or communication given in connection with this Contract. Any written notice or communication may be transmitted to any mailing address, e-mail address or fax number set forth in the "Notice Information" section below. Any notice or communication to be given to a party

Buyer's initials MSK Seller's initials GS SIRVA

herein, and any fee, deposit or other payment to be delivered to a party herein, may be given to the party or to such party's agent. Delivery of any notice to a party via means of electronic transmission shall be deemed complete at such time as the sender performs the final act to send such transmission, in a form capable of being processed by the receiving party's system, to any electronic address provided for such party in the "Notice Information" section below. Seller and Buyer agree that the "Notice Information" and "Acknowledgment of Receipt of Monies" sections below shall not constitute a material part of this Contract, and that the addition or modification of any information therein shall not constitute a rejection of an offer or the creation of a counteroffer.

21. EXECUTION: This Contract may be signed in multiple originals or counterparts, all of which together constitute one and the same instrument.

22. COMPUTATION OF DAYS/TIME OF DAY: Unless otherwise provided, for purposes of this Contract, the term "days" shall mean consecutive calendar days, including Saturdays, Sundays, and holidays, whether federal, state, local or religious. For the purposes of calculating days, the count of "days" shall begin on the day following the day upon which any act or notice as provided in this Contract was required to be performed or made. Any reference to a date or time of day shall refer to the date and/or time of day in the State of North Carolina.

23. REMEDIES:

(a) **Breach by Buyer:** In the event of material breach of this Contract by Buyer, Seller shall be entitled to any Earnest Money Deposit. The payment of any Earnest Money Deposit and any Due Diligence Fee to Seller (without regard to their respective amounts, including zero) together shall serve as liquidated damages ("Liquidated Damages") and as Seller's sole and exclusive remedy for such breach, but without limiting Seller's rights under Paragraphs 4(e) and 4(f) for damage to the Property. It is acknowledged by the parties that the amount of the Liquidated Damages is compensatory and not punitive, such amount being a reasonable estimation of the actual loss that Seller would incur as a result of a breach of this Contract by Buyer. The payment to Seller of the Liquidated Damages shall not constitute a penalty or forfeiture but actual compensation for Seller's anticipated loss, both parties acknowledging the difficulty of determining Seller's actual damages for such breach.

(b) **Breach by Seller:** In the event of material breach of this Contract by Seller, Buyer may (i) elect to terminate this Contract as a result of such breach, and shall be entitled to return of both the Earnest Money Deposit and the Due Diligence Fee, together with the reasonable costs actually incurred by Buyer in connection with Buyer's Due Diligence ("Due Diligence Costs"), or (ii) elect not to terminate and instead treat this Contract as remaining in full force and effect and seek the remedy of specific performance.

(c) **Attorneys' Fees:** If legal proceedings are brought by Buyer or Seller against the other to collect the Earnest Money Deposit, Due Diligence Fee, or Due Diligence Costs, the parties agree that a party shall be entitled to recover reasonable attorneys' fees to the extent permitted under N.C. Gen. Stat. § 6-21.2. The parties acknowledge and agree that the terms of this Contract with respect to entitlement to the Earnest Money Deposit, Due Diligence Fee, or Due Diligence Costs each constitute an "evidence of indebtedness" pursuant to N.C. Gen. Stat. § 6-21.2.

NOTE: A party seeking recovery of attorneys' fees under N.C. Gen. Stat. § 6-21.2 must first give written notice to the other party that they have five (5) days from the mailing of the notice to pay the outstanding amount(s) without the attorneys' fees.

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Buyer's initials MSK RM Seller's initials SG SIEVA

THE NORTH CAROLINA ASSOCIATION OF REALTORS®, INC. AND THE NORTH CAROLINA BAR ASSOCIATION MAKE NO REPRESENTATION AS TO THE LEGAL VALIDITY OR ADEQUACY OF ANY PROVISION OF THIS FORM IN ANY SPECIFIC TRANSACTION. IF YOU DO NOT UNDERSTAND THIS FORM OR FEEL THAT IT DOES NOT PROVIDE FOR YOUR LEGAL NEEDS, YOU SHOULD CONSULT A NORTH CAROLINA REAL ESTATE ATTORNEY BEFORE YOU SIGN IT.

This offer shall become a binding contract on the Effective Date. Unless specifically provided otherwise, Buyer's failure to timely deliver any fee, deposit or other payment provided for herein shall not prevent this offer from becoming a binding contract, provided that any such failure shall give Seller certain rights to terminate the contract as described herein or as otherwise permitted by law.

Date: Mar 20, 2023 | 9:05 AM CDT

DocuSigned by:
Buyer: Michael S. Kirchoff

Date: Mar 20, 2023 | 8:46 AM CDT

DocuSigned by:
Buyer: Rachel Miskowicz

Date: _____

Seller: _____

Date: _____

Seller: _____

Entity Buyer:

(Name of LLC/Corporation/Partnership/Trust/etc.)

By: _____

Name: _____

Print Name

Title: _____

Date: _____

Entity Seller:

SIRVA Relocation LLC
(Name of LLC/Corporation/Partnership/Trust/etc.)

By: Sally Scovill

Name: Sally Scovill

Print Name

Title: Senior Relocation Consultant

Date: 3-22-2023

WIRE FRAUD WARNING

TO BUYERS: BEFORE SENDING ANY WIRE, YOU SHOULD CALL THE CLOSING ATTORNEY'S OFFICE TO VERIFY THE INSTRUCTIONS. IF YOU RECEIVE WIRING INSTRUCTIONS FOR A DIFFERENT BANK, BRANCH LOCATION, ACCOUNT NAME OR ACCOUNT NUMBER, THEY SHOULD BE PRESUMED FRAUDULENT. DO NOT SEND ANY FUNDS AND CONTACT THE CLOSING ATTORNEY'S OFFICE IMMEDIATELY.

TO SELLERS: IF YOUR PROCEEDS WILL BE WIRED, IT IS RECOMMENDED THAT YOU PROVIDE WIRING INSTRUCTIONS AT CLOSING IN WRITING IN THE PRESENCE OF THE ATTORNEY. IF YOU ARE UNABLE TO ATTEND CLOSING, YOU MAY BE REQUIRED TO SEND AN ORIGINAL NOTARIZED DIRECTIVE TO THE CLOSING ATTORNEY'S OFFICE CONTAINING THE WIRING INSTRUCTIONS. THIS MAY BE SENT WITH THE DEED, LIEN WAIVER AND TAX FORMS IF THOSE DOCUMENTS ARE BEING PREPARED FOR YOU BY THE CLOSING ATTORNEY. AT A MINIMUM, YOU SHOULD CALL THE CLOSING ATTORNEY'S OFFICE TO PROVIDE THE WIRE INSTRUCTIONS. THE WIRE INSTRUCTIONS SHOULD BE VERIFIED OVER THE TELEPHONE VIA A CALL TO YOU INITIATED BY THE CLOSING ATTORNEY'S OFFICE TO ENSURE THAT THEY ARE NOT FROM A FRAUDULENT SOURCE.

WHETHER YOU ARE A BUYER OR A SELLER, YOU SHOULD CALL THE CLOSING ATTORNEY'S OFFICE AT A NUMBER THAT IS INDEPENDENTLY OBTAINED. TO ENSURE THAT YOUR CONTACT IS LEGITIMATE, YOU SHOULD NOT RELY ON A PHONE NUMBER IN AN EMAIL FROM THE CLOSING ATTORNEY'S OFFICE, YOUR REAL ESTATE AGENT OR ANYONE ELSE.

NOTICE INFORMATION

NOTE: INSERT AT LEAST ONE ADDRESS AND/OR ELECTRONIC DELIVERY ADDRESS EACH PARTY AND AGENT APPROVES FOR THE RECEIPT OF ANY NOTICE CONTEMPLATED BY THIS CONTRACT. INSERT "N/A" FOR ANY WHICH ARE NOT APPROVED.

BUYER NOTICE ADDRESS:

Mailing Address: _____

Buyer Fax#: _____

Buyer E-mail: _____

SELLER NOTICE ADDRESS:

Mailing Address: _____

Seller Fax#: _____

Seller E-mail: _____

CONFIRMATION OF AGENCY/NOTICE ADDRESSES

Selling Firm Name: NextHome world classActing as ☒ Buyer's Agent ☐ Seller's (sub)Agent ☐ Dual AgentFirm License #: C29672Mailing Address: 287 Alocove RoadMooresvilleIndividual Selling Agent: Libby allison☐ Acting as a Designated Dual Agent (check only if applicable)Selling Agent License #: 303873Selling Agent Phone #: 704-345-7757

Selling Agent Fax #: _____

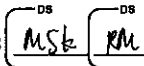
Selling Agent E-mail: libbyallison1@gmail.comListing Firm Name: Allen Tate Steele CreekActing as ☒ Seller's Agent ☐ Dual AgentFirm License #: C30590Mailing Address: 130 Ayrley Town Blvd Charlotte, NorthCharlotteIndividual Listing Agent: Ann-Dorthe Havmoeller☐ Acting as a Designated Dual Agent (check only if applicable)Listing Agent License #: NC 273592Listing Agent Phone #: 704-608-7216

Listing Agent Fax #: _____

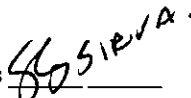
Listing Agent E-mail: dorthe.h@allentate.com

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Buyer's initials



Seller's initials



ACKNOWLEDGMENT OF RECEIPT OF MONIES

Seller: Sirva ("Seller")Buyer: Michael Kirchoff Rachel Miskowicz ("Buyer")Property Address: 17416 SARANITA LN CHARLOTTE NC 28278 ("Property")☒ LISTING AGENT ACKNOWLEDGMENT OF RECEIPT OF DUE DILIGENCE FEEParagraph 1(d) of the Offer to Purchase and Contract between Buyer and Seller for the sale of the Property provides for the payment to Seller of a Due Diligence Fee in the amount of \$5,000.00, receipt of which Listing Agent hereby acknowledges.Date _____ zero Firm: Allen Tate Steele Creek

By: _____

(Signature)

Ann-Dorthe Havmoeller

(Print name)

☐ SELLER ACKNOWLEDGMENT OF RECEIPT OF DUE DILIGENCE FEEParagraph 1(d) of the Offer to Purchase and Contract between Buyer and Seller for the sale of the Property provides for the payment to Seller of a Due Diligence Fee in the amount of \$5,000.00, receipt of which Seller hereby acknowledges.

Date _____ zero Seller: _____

(Signature)

Date _____ Seller: _____

(Signature)

☐ ESCROW AGENT ACKNOWLEDGMENT OF RECEIPT OF INITIAL EARNEST MONEY DEPOSITParagraph 1(d) of the Offer to Purchase and Contract between Buyer and Seller for the sale of the Property provides for the payment to Escrow Agent of an Initial Earnest Money Deposit in the amount of \$ 5,000.00. Escrow Agent as identified in Paragraph 1(f) of the Offer to Purchase and Contract hereby acknowledges receipt of the Initial Earnest Money Deposit and agrees to hold and disburse the same in accordance with the terms of the Offer to Purchase and Contract.Date _____ Firm: NextHome world class

By: _____

(Signature)

(Print name)

☐ ESCROW AGENT ACKNOWLEDGMENT OF RECEIPT OF (ADDITIONAL) EARNEST MONEY DEPOSITParagraph 1(d) of the Offer to Purchase and Contract between Buyer and Seller for the sale of the Property provides for the payment to Escrow Agent of an (Additional) Earnest Money Deposit in the amount of \$ 8000. Escrow Agent as identified in Paragraph 1(f) of the Offer to Purchase and Contract hereby acknowledges receipt of the (Additional) Earnest Money Deposit and agrees to hold and disburse the same in accordance with the terms of the Offer to Purchase and Contract.Date: _____ Firm: NextHome world classTime: _____ ☐ AM ☐ PM By: _____

(Signature)

(Print name)



Force Majeure Event Addendum to Purchase Agreement

The performance of this Agreement is subject to termination and/or extension upon the occurrence of an Excused Event, as further defined below. As used herein, an "Excused Event" shall mean any Acts of God, declared state of emergency or public health emergency, pandemic (specifically including COVID-19), government mandated quarantines and isolations, war, acts of terrorism, organized labor activities, natural disasters, and/or government mandated orders for civil or military authorities any or all of which would either hinder the Seller's or the Buyer's performance under this Agreement and/or make such performance impractical and/or impossible. If an Excused Event occurs to the Seller or the Buyer, as the case may be then the Seller or the Buyer (as applicable) shall provide notice to the other of such Excused Event as soon as practical and the Seller or the Buyer (as applicable) shall have the option of:

- A. Delaying Seller's or Buyer's (as applicable) performance and obligations hereunder, including but not limited to, delaying the closing date, and notifying the Seller or the Buyer (as applicable) of the anticipated additional time needed in order to perform Seller's or Buyer's (as applicable) obligations pursuant to this Agreement; or
- B. Terminating this Agreement. In the event of termination, the Seller's only obligation shall be to return the deposit funds to the Buyer.

In the event the Seller or the Buyer chooses to extend this Agreement pursuant to section A, above, and if the continuation of the Excused Event would make Seller's or Buyer's performance (as applicable) impractical and/or impossible, the Seller or the Buyer may then elect to terminate this Agreement.

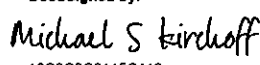
In the event Seller terminates this Agreement, the Buyer's sole and exclusive remedy shall be a return of the earnest money or Buyer's deposit and the Seller shall be released from any and all liability that may arise under this Agreement.



Seller (SIRVA Relocation LLC)

3-22-2023

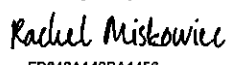
Date

DocuSigned by:


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Buyer

Mar 21, 2023 | 12:46 PM CDT

Date

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Buyer

Mar 21, 2023 | 12:34 PM CDT

Date



Transferee ID: 614634

RIDER TO SALES AGREEMENT

Notwithstanding anything contained in the foregoing sales agreement or any exhibit, rider addendum or amendment to said sales agreement (collectively, the "Agreement") of certain improved real property commonly known as:

**17416 Saranita Ln
Charlotte, NC 28278**

("Property") the parties agree to modify and amend said Agreement in the following respects. In the event of any conflicts between the terms of this Rider and the Agreement (whether the Agreement terms are template terms, handwritten terms, or otherwise inserted), this Rider shall conclusively govern.

1. Financing Contingency

Earnest Deposit Amount ("Deposit") \$ ~~5000~~ 8,000 ^{DS} RM ^{DS} MSK 512,000

Purchaser's Loan Program: Conventional FHA Other (cash)

A.1(i) This Agreement is contingent upon the Purchaser's ability to obtain a written a loan commitment, notice of underwriting approval, or equivalent document ("Loan Approval") at current market rates. Prior to and as a condition of Seller's acceptance, Buyer shall complete and provide the Buyer Information Form previously provided to Purchaser by SIRVA Relocation LLC ("Seller"); or provide a pre-qualification letter with substantially the same information and in the amount as identified in the Agreement to which this Rider is attached ("Pre-Qualification"). In the event Purchaser submits a cash sale offer, then attached to said cash offer, the Purchaser must supply acceptable documentation showing proof of funds sufficient to satisfy the purchase price of the Agreement.

A.1(ii) If Purchaser is unable, despite best efforts, to obtain final Loan Approval within N/A days [if blank, fifteen (15) days] of the date of this Agreement (the "Financing Contingency Release Date"), then Purchaser shall provide Seller with a written copy of their lender's statement of credit denial, termination or change (the "Denial"). If such Denial is not delivered on or before the Financing Contingency Release Date, the Agreement and this Rider shall be deemed unconditional with regard to any financing contingency.

A.1(iii) If such Denial is delivered by the Financing Contingency Release Date, then Seller shall have the right to attempt to procure new financing substantially comparable to current market rates, or in accordance with the terms originally provided by the Purchaser within the Pre-Qualification, and with no obligation to the Purchaser to accept such terms. Should Seller attempt to procure said new financing, the Purchaser shall cooperate with Seller or with the Seller's designated Lender(s) to apply for and obtain such new financing. In the event that Seller is unable to obtain new financing for the Purchaser or should Purchaser refuse said offer of financing within Twenty (20) days from Purchaser's Denial, then this Agreement shall be terminated and all monies there before deposited shall be returned to the Purchaser.

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- A. If Purchaser owns a home and this Agreement is not subject to the **closing** of said home, the Purchaser's Pre-Qualification must indicate that Purchaser is qualified **without** selling said home. If the Agreement is subject to Purchaser's home **closing**, Purchaser shall provide Seller within **two (2) days** of acceptance of this Agreement ("Contract Delivery Date") a copy of a fully executed contract on Purchaser's home ("Contract") and evidence from Purchaser's buyer reasonably satisfactory to Seller, that said buyer is qualified to consummate the purchase of Purchaser's home. If Purchaser fails to provide satisfactory evidence by the Contract Delivery Date or if the evidence is not satisfactory to Seller, Seller shall have the option of canceling the Agreement, this Rider, and the sale by notifying Purchaser within five (5) calendar days after the Contract Delivery Date.
- B. In the event that this Agreement is not subject to a financing contingency, then, prior to any acceptance of the Agreement by the Seller, the Purchaser shall provide Seller with evidence reasonably satisfactory to Seller that Purchaser has the financial means to consummate this purchase, including, but not limited to, evidence of the source of funds and the liquidity of funds in an amount equal to or greater than the purchase price and closing costs.

1. Condition and Inspections

Purchaser must acknowledge receipt of any and all disclosure documents identified below (collectively, "Disclosures"). Said Disclosures are informational only and represent only the opinions of the individuals or firms which prepared them and Seller makes no representation, warranties or recommendation concerning said Disclosures. Purchaser further acknowledges that certain Disclosures were completed by the record owner of the Property previous to SIRVA. Further, Purchaser acknowledges that the Disclosures fulfill any obligation of Seller to disclose conditions of the Property to Purchaser; and that Seller may not complete an independent investigation and/or disclosure for the Property.

Please **INITIAL ONLY** those items provided to Buyer. By initialing below, Purchaser acknowledges receipt, review and acceptance of these Disclosures and agrees that THIS INFORMATION CONSTITUTES DISCLOSURE ONLY AND IS NOT INTENDED TO BE A PART OF ANY AGREEMENT BETWEEN PURCHASER AND SELLER.

YES DS DS MSL RM MSL RM DS DS MSL RM DS DS MSL RM _____ _____ _____ _____	Disclosures/Tests/Inspections/Disclaimers. By <u>INITIALING</u> below, Purchaser acknowledges receipt of certain Disclosures. Disclosure Statement completed by previous record owner (SIRVA Relocation form) Disclosure Statement completed by previous record owner (Local/State form) Disclosure Statement prepared by Seller (Local/State form) Notice of Affiliated Business Arrangements Lead Paint Disclosure (if the home was built prior to 1978) Indoor Air Quality Disclaimer General Home Inspection Report Major Component Inspection Radon Inspection Report "A Citizen's Guide to Radon" and "Radon Reduction Methods" issued by the United States Environmental Protection Agency
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☐ Termite/pest Inspection Report
☐ Well Inspection Report
☐ Water Quality Inspection Report
☐ Septic Inspection Report
☐ Pool Inspection Report
☐ Underground Storage Tank Inspection Report
☐ Mold Inspection Report
☒ Asbestos Inspection Report
☒ Radon Warranty: HomeBuyer's Preferred, Inc.
☒ SIRVA Privacy Policy
☐ Other (identify) _____

It is acknowledged that Seller has never occupied the Property and, as such, the Property and any fixtures, systems, appliances or other personal property conveyed are being sold in "as is" condition to the maximum extent allowed by law. Neither Seller or any of its agents make any representations or warranties concerning the Property, including but not limited to, representations regarding: the size of the buildings, square footage discrepancies, improvements, fixtures, systems, appliances, solar panels, building materials or other personal property conveyed, the presence or absence of toxic or hazardous substances, or the presence or absence of any encroachments or unrecorded easements. Purchaser further acknowledges that the Property may not be new and Purchaser does not expect the Property or any systems therein to be in the same condition nor function as new.

Purchaser shall have the right, to obtain such independent inspections, surveys, and tests (collectively, "Inspections") that Purchaser deems necessary or desirable, at Purchaser's own cost and expense, within a period of ten (10) days from the date of the Agreement ("Inspection Period").

Within the ten (10) day Inspection Period, Purchaser shall deliver written notice to Seller that either:

- A. Purchaser is satisfied with the inspection results, waives all repair and inspection contingencies, and is purchasing the Property "as is", with written notice to Seller of such; or,
- B. The inspection of the Property revealed repair issues where Purchaser would seek negotiation of such repair issues. In such event, Purchaser shall identify all repair issues to Seller in writing and provide the accompanying inspection report(s).
- C. **If Purchaser fails to timely elect either A or B herein within said ten (10) day Inspection Period by written notice to Seller, Seller may terminate this Agreement with Purchaser to forfeit all amounts heretofore deposited.**

Failure of Purchaser to complete inspections and provide Seller with the professional inspection report(s) as per the terms above under (A-C) within the ten (10) day Inspection Period, shall act as an express waiver of any and all inspection and repair contingencies in the Agreement and this Rider.

Upon notice of the repair or inspection issues to Seller, Seller shall within ten (10) days thereafter ("Inspection Resolution Period") elect one of the following:

- i) Timely complete the repairs to reasonably satisfactory condition;
- ii) At closing, credit the Purchaser with the mutually agreed-upon cost of the specified

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repair item(s), where applicable and if permitted by the relevant lending, banking or other local or state entity;

iii) Negotiate the repair issues with Purchaser, including which items are to be repaired, the cost of such repair items, and a time frame for completion of any such repairs and with the mutual understanding that closing may therefore need to be extended; or.

iv) Terminate this Agreement and return to Purchaser all earnest money deposit amounts.

Seller has no knowledge concerning the presence of radon gas, asbestos, mold, pet-related conditions, corrosive drywall, or any other toxic or hazardous substances in, around, or under the Property, and quality or type of building materials, regardless as to the source or cause of any such substance, condition or material. However, Purchaser shall not interpret Seller's lack of knowledge as a representation that the Property is free of radon gas, asbestos, mold, pet-related conditions, defective building materials, toxic or hazardous substances, or any other defects or conditions. The Purchaser hereby agrees to hold Seller, and/or its assigns harmless from any subsequent consequences, which may result from any defect, hazardous or toxic conditions, radon levels and/or the effects thereof.

IMPORTANT NOTICE – "BUYER BEWARE CLAUSE"

SELLER MAKES NO REPRESENTATIONS OR WARRANTIES OF ANY SORT WHATSOEVER REGARDING THE PROPERTY, ITS CONDITION, VALUE OR SURROUNDS AND MAY NOT BE HELD LIABLE OR RESPONSIBLE FOR ANY DAMAGES OR LIABILITY TO PURCHASER OR ANY OTHER PERSON OR ENTITY. PURCHASER IS AGREEING TO FULLY RELY ON ITS RIGHT TO INSPECTIONS, TESTS AND SURVEYS GRANTED HEREIN TO DISCOVER ANY UNDESIRABLE OR LATENT CONDITIONS REGARDING THIS PROPERTY, AND ACKNOWLEDGES THAT SELLER HAS MADE NO REPRESENTATIONS THEREON UPON WHICH PURCHASER MAY RELY. THE PROVISIONS HEREIN SHALL SURVIVE CLOSING AND DELIVERY OF THE DEED. THE CLOSING OF THIS TRANSACTION SHALL CONSTITUTE PURCHASER'S FULL AND COMPLETE ACCEPTANCE AND RELEASE OF CLAIMS FOR ALL CONDITIONS, DEFECTS, AND INSPECTION MATTERS HEREIN.

2. Unenforceability

In the event that any provision, section, or part hereof is held to be void, voidable, unenforceable or illegal, then it shall be severed from the remainder of the Agreement and such provision shall be modified by a court of law to be enforceable and legal in such a manner as most nearly conforms to the intentions expressed within the Agreement.

3. Arbitration

The parties acknowledge that this Rider contains a binding arbitration provision which may be enforced by either party. Any disagreement over the terms, construction, or enforcement of this agreement or any dispute whatsoever arising out of or relating to the sale of the property, the Agreement or this Rider or the condition of the property (including the arbitrability of such a matter) shall be submitted to final and binding arbitration by and under the rules of the American Arbitration Association. The Arbitration shall be governed by the Federal Arbitration Act. The demand for arbitration must be in writing and must be given by personal delivery or certified mail, return receipt requested, within three hundred sixty-five (365) days after the party making the demand knew, or exercising reasonable diligence and care, should have known, of the dispute. The decision of the arbitrator shall be final and binding upon the parties and

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enforceable by any court of competent jurisdiction. The costs of such arbitration and other litigation, including reasonable attorney fees of the other party, shall be paid by the party against which an arbitration award or finding is made. The arbitrator shall be allowed to allocate such costs and fees between the parties in an equitable manner, giving consideration to the intent of this provision, in the event that the findings or award are not conclusively for or against either party.

4. Tenant Rights

Seller hereby transfers any tenant or other rental agreement rights it may have in said Property to Purchaser. Purchaser hereby accepts such assignment and agrees that no changes shall be made to any such contract or lease with the current occupant of said Property without the express written consent of occupant except that Purchaser shall be permitted to enforce any eviction remedies available to Purchaser if necessary.

5. Contingency Satisfaction

Notwithstanding any other contingency satisfaction dates contained in the Agreement or this Rider, if any contingency dates have been extended or continued then all such contingencies the Purchaser may have with respect to the Agreement and this Rider must be satisfied, released or waived in writing by Purchaser no less than Four (4) days prior to the closing date unless agreed to differently by the parties in writing. Failure of Purchaser to so satisfy, release or waive any contingency shall permit Seller, at Seller's option, to (i) cancel the Purchase Agreement, (ii) extend in writing the time for satisfaction, waiver or release and/or extend the time for closing of the Property; or (iii) proceed with closing as scheduled.

In the event that the Purchaser has any termination rights in the Agreement or this Rider, and in the event that the Purchaser exercises or gives notice of intent to exercise any such termination rights, then Seller is granted and has the right to cure the reason for said termination. Should Seller agree to fully cure as stated herein, the termination shall no longer be applicable.

7. Damages – Remedies

In the event that Purchaser is in default under any of the terms of the Agreement this Rider or any addenda, then in addition to any remedy specifically stated herein, Seller shall have all other remedies available at law or in equity, notwithstanding any limitation as may be stated in any other pre-printed contract document between the parties.

8. Limitation of Liability

Any liability hereunder or in any other way to the Purchaser from Seller shall be limited to the assets of SIRVA Relocation LLC and not its members, managers, officers, directors, employees or assigns.

9. Closing Date; Delayed Closing Penalty; TRID Requirements

A. The federal Consumer Financial Protection Bureau ("CFPB") requires a lender providing mortgage loans to follow the Integrated Disclosure Rule ("Closing Disclosure Rule"). Pursuant to that rule the final Closing Disclosure must be received by Purchaser at least three (3) Business Days prior to the date the Purchaser becomes obligated to the mortgage loan. ("Time for Performance").

B. When Time for Performance is delayed due to the requirements of the Closing Disclosure Rule and such delay is not solely caused through any failure of Purchaser to timely act as per the

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Purchaser's lender's requirements for loan completion then the Closing Date (as defined below) may be delayed until the Purchaser receives a revised Closing Disclosure but in no event more than five (5) business days from the original Closing Date.

- C. Upon request from Buyer, Seller shall provide Buyer reasonably obtainable necessary information in Seller's possession in order to estimate certain prorations concerning water, taxes, utilities, oil, and fuel tank adjustments. Purchaser and Seller understand and agree that additional calculations prior to Closing Date may be necessary to reach a more accurate rate of adjustments. Purchaser and Seller agree that no further adjustments will be made after the Closing Date.
- D. Purchaser agrees to obtain and provide to Seller or to a person as directed by Seller, all contact information for Purchaser's attorney and/or Purchaser's mortgage lender attorney as soon as practicable, after Purchaser obtains all Closing Disclosure information from Lender and in no event not less than fourteen (14) days prior to the Closing Date under the Agreement.
- E. Except for the delay occasioned by the Closing Disclosure Rule as set forth in section 9.B, Purchaser agrees to close on the date certain set forth in the Agreement ("Closing Date") (OR before said Closing Date only upon mutual written agreement between the parties.) In the event Purchaser fails to close by said Closing Date (or the delayed Closing Date in Section 9.B, if applicable), Purchaser shall pay to Seller a penalty of the actual carrying costs of the Property per month, prorated on a per diem basis, for every day Purchaser fails to meet the Closing Date.

10. Other

- A. The Agreement is contingent upon Seller being able to deliver good and marketable title to the Property. If Seller is unable to transfer title as required above, Seller and Purchaser shall delay the Closing a maximum of _____ Days (thirty (30) days if blank) beyond scheduled Closing Date to cure the problem and notify Purchaser of such cure. If good and marketable title is not delivered for any reason within this time period, then all Deposit monies shall be returned to the Purchaser. The Seller makes no covenant, representation or warranty as to the ability to deliver clear and marketable title.
- B. The Purchaser acknowledges and agrees that the recorded title to the Property may be conveyed to Purchaser by a person or entity other than Seller and that the Seller on the Closing Disclosure form and settlement statement shall be Seller or its assignee regardless of the grantor's name on the deed to grantee.
- C. On or before the date of closing, the Seller will acquire complete equitable ownership in and of the Property in a bona fide, non-fraudulent transaction for good and valuable consideration at fair market value. Seller will hold the Buyer harmless from any claims by the record title holder concerning ownership and transfer of title of the Property to Buyer.
- D. Tax prorations and assessments, if any, shall be based upon the most recent tax bill available for the Property. Purchaser and Seller agree that no further adjustments will be made after the Closing Date, except that Purchaser shall refund to Seller any duplicate payments made by Seller. Should Seller over pay or duplicate any tax amounts ("Duplicate Payments") for any reason and where Purchaser shall rightfully owe such Duplicate Payments after the Closing Date, then, at the time of future levy, Purchaser further agrees to promptly obtain and refund to Seller all Duplicate Payments remitted by the Seller to the Lender, tax office or other closing entity.



- E. If Seller shall pay any costs, expenses or charges (collectively "Charges") of the Purchaser, and Purchaser receives any payments from Purchaser's lender or from another third party, which are attributable to the Charges paid out by the Seller, including but not limited to any cure payments to the Purchaser as a result of Good Faith Estimate tolerance violations under RESPA, then Purchaser shall reimburse, credit, or otherwise refund such payments to Seller ("Reimbursements"). Said Reimbursements will be paid out at closing, however any failure to resolve at Closing Date for any reason shall not relieve the Purchaser of the obligation to provide said Reimbursements to Seller as soon as known or received by the Purchaser.
- F. Seller will not accept any assignment of funds. All funds are due in immediately available funds at closing. Buyer is not entitled to possession of the Property until the purchase proceeds have been transferred to and received by Seller.
- G. Purchaser agrees to credit Seller for any fuel remaining based on a fuel reading by a fuel company.
- H. The closing of this sale shall constitute Purchaser's acknowledgement that the Property and systems therein and the condition thereof, were acceptable at the time the sale was closed.
- I. Purchaser shall be permitted a visual inspection of the Property no sooner than seventy two (72) hours prior to Closing Date to insure that the Property is in the condition pursuant to this Agreement, reasonable wear and tear excepted with Seller's "Notice of Completion and Acceptance of Repairs" to be executed at or before closing. This paragraph does not permit Purchaser to request repairs for any pre-existing matter not previously requested under the Condition and Inspection Section (2) except to maintain the Property's original condition.
- J. Purchaser hereby releases and forever discharges Seller, Seller's agents, employees, and any other officer, director or partner, or any one of them, or any other person, firm, or corporation who may be liable by or through the Seller from any and all claims, losses or demands which may arise from any condition whether known or unknown as to the Property.
- K. Both parties shall use reasonable good faith efforts to resolve any disputes prior to exercising any termination rights contained in the Agreement Rider or any addenda.
- L. Purchaser's earnest money deposit check shall be made payable to Seller's listing broker and be deposited in escrow within twenty-four (24) hours of Agreement execution, with proof of escrow deposit to Seller.
- M. Seller may assign this Agreement without the consent of the Purchaser.
- N. Purchaser will rely on Purchaser's own inquiry with the local sheriff's office or other authority as to registered sex offenders in the area and will not rely on Seller or any real estate agent involved in the transaction for this information.
- O. All notices and communication due under this Rider shall be in writing.

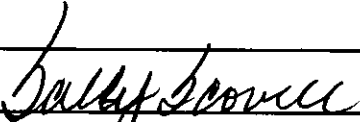
11. Facsimile Signature

This Rider shall be deemed valid and effective by original, scanned or facsimile signature. This Rider shall also be valid and effective if signed in Counterparts. If electronic signatures are used they must be accompanied by a document that contains at least the following: i) number of pages in the signed



document; ii) number of signatures and initials in the signed document; iii) security level/means of identification; iv) identification number; v) IP address; vi) confirmation of hashed/encryption and security check; and, (viii) pro forma signature (an "Authentication Certificate"). As used herein, the singular shall include the plural and gender shall apply as applicable.

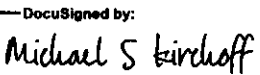
SELLER: SIRVA Relocation LLC

By: 

Date: 3-22-2023

PURCHASER: 
DocuSigned by: F0848A142BA1456...

Date: Mar 20, 2023 | 8:45 AM CDT

PURCHASER: 
DocuSigned by: 16C8C3C8115C446

Date: Mar 20, 2023 | 9:06 AM CDT

BUYER'S AGENT – READ THIS FORM!



Transferee ID: 614634

Addendum to Purchase Agreement – Closing Agent Selection Agreement

By signing this form, Buyer and Seller hereby acknowledge, understand, and agree to select as follows:

- **THE ESCROW AND CLOSING PROCESS WILL BE CONDUCTED BY:**

Karrenstein & Love, PLLC
10590 Independence Pointe Parkway, Suite 200
Matthews, NC 28105
Phone:

- **STEWART TITLE WILL UNDERWRITE THE TITLE INSURANCE POLICY(IES).**
- **A TITLE EXAM AND COMMITMENT HAVE BEEN OR WILL BE OBTAINED AND ISSUED THROUGH SIRVA SETTLEMENT, INC. OR OBTAINED BY THE ABOVE REFERENCED OFFICE. If SIRVA Settlement, Inc. is the listed office, the Buyer understands and agrees that SIRVA Settlement may assign one or more of its title issuance, escrow or closing activities to another qualified title, escrow and or closing office which will be identified by SIRVA Settlement prior to closing.**

The closing will take place at a location mutually agreed upon by the Seller and the Buyer. Karrenstein & Love, PLLC has the authority to select a location on behalf of the Seller.

IMPORTANT NOTICE OF BUYER'S AGREEMENT

FEDERAL LAW AND COMPARABLE STATE LAW REQUIRE THAT NO SELLER OF PROPERTY THAT WILL BE PURCHASED WITH THE ASSISTANCE OF A FEDERALLY RELATED MORTGAGE LOAN SHALL REQUIRE DIRECTLY OR INDIRECTLY, AS A CONDITION TO SELLING THE PROPERTY, THAT TITLE INSURANCE COVERING THE PROPERTY BE PURCHASED BY THE BUYER FROM ANY PARTICULAR TITLE COMPANY.

BUYER FULLY UNDERSTANDS THAT BUYER IS *NOT REQUIRED TO PURCHASE TITLE INSURANCE FROM THE TITLE AND/OR ESCROW AND CLOSING COMPANY PROPOSED BY SELLER AS A CONDITION OF BUYING THIS PROPERTY.* OTHER COMPANIES EXIST THAT CAN PROVIDE THE SAME OR SIMILAR SERVICES. ANY PRE-POPULATED TERMS HEREIN CAN BE CHANGED BY THE PARTIES.

BY SIGNING THIS CLOSING AGENT SELECTION AGREEMENT, THE BUYER ACKNOWLEDGES AND AGREES THAT BUYER HAS HAD AN OPPORTUNITY TO COMPARE THE COSTS AND SERVICES OF THE TITLE AND/OR ESCROW AND CLOSING COMPANY PROPOSED BY SELLER WITH COSTS AND SERVICES OF OTHER TITLE AND/OR ESCROW AND CLOSING COMPANIES. BUYER HAS NEGOTIATED AND AGREED TO THE SELECTION OF TITLE INSURANCE, THE ESCROW AND CLOSING OFFICE AND AGREES TO THE SELECTION OF THE TITLE INSURANCE AGENT AND UNDERWRITER AND THE ESCROW AND CLOSING OFFICE CONTAINED HEREIN.

BUYER SHALL INFORM BUYER'S AGENT AND MORTGAGE LENDER OF THIS AGREEMENT AND PROVIDE BOTH AGENT AND LENDER A COPY OF THIS AGREEMENT.

The parties commit to provide the lender information and any other pertinent details needed to facilitate a timely closing through **SIRVA Settlement, Inc. or its assignee, Karrenstein & Love, PLLC.**

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BUYER'S AGENT – READ THIS FORM!

Title insurance, closing and escrow charges will be paid by the parties in accordance with the normal and customary split of charges for the area, or as specified in the Purchase Agreement for the Property referenced below. Any additional title exams including those required by Buyer's lender (other than an update of the Seller's title exam prior to closing) shall be paid for by the Buyer.

Buyer acknowledges that Buyer has been advised that SIRVA Settlement, Inc. is an affiliated entity to Seller and Buyer has received and read a Notice of Affiliated Business Arrangements disclosure.

In the event of any disagreements or conflicts between the terms of this Agreement and the Purchase Agreement and/or other Riders or Addenda, this Agreement shall conclusively govern.

☐ CHECK HERE IF DECLINING SIRVA SETTLEMENT OR ITS ASSIGNEE

17416 Saranita Ln
Charlotte, NC 28278

SIRVA RELOCATION LLC, SELLER

By:

Date:

Julie Scoville
3/22-2023

DocuSigned by:

Michael S Kirchoff

BUYER

~~DocuSigned by:~~

Rachel Miskowicz

BUYER

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Date: Mar 19, 2023 | 2:46 PM CDT Mar 19, 2023 | 1:03 PM C

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SELLER'S DISCLOSURE STATEMENT

Transferee ID: 614634

Property Address:

17416 Saranita Ln

Charlotte, NC, 28278

I/we the undersigned Physical Owner/Seller(s) of the property have completed this form to provide full disclosure as to the known condition of the property to potential buyers. These statements are accurate to the best of my (our) actual knowledge and Seller(s) warrant that they have not, and will not, tamper, alter or interfere with any test or inspection conducted regarding the property.

THIS HOME OWNER DISCLOSURE FORM IS COMPLETED BY THE OWNER OF THE PROPERTY PREVIOUS TO SIRVA. SIRVA HAS NOT COMPLETED THIS FORM AND MAKES NO REPRESENTATIONS OR WARRANTIES CONCERNING THE CONTENT OR ACCURACY OF ANY INFORMATION ON THIS FORM. THE INFORMATION ON THIS HOME OWNER DISCLOSURE FORM IS INFORMATIONAL ONLY AND REPRESENTS ONLY THE INFORMATION FROM THE INDIVIDUALS WHO PREPARED OR COMPLETED THIS FORM. SIRVA MAKES NO REPRESENTATION OR RECOMMENDATION CONCERNING THIS HOME OWNER DISCLOSURE FORM.

Physical Record Owner/Seller(s) agree to indemnify and hold SIRVA Relocation LLC (SIRVA) and its representatives and affiliates (hereinafter referred to SIRVA or SIRVA Relocation LLC) harmless from any and all claims made against SIRVA regarding conditions of the property, which are not disclosed to SIRVA herein.

Date of Purchase: 2018-08-06 **Length of Occupancy:** 6

Year Home Was Built: 2017 (Note: If prior to 1978, SIRVA Relocation Lead Base Paint

Disclosure to be completed and attached.)

*****For any extended explanations, please use additional sheets as necessary, securely attach and number.*****

MAJOR DAMAGE:	NO	YES	UNKNOWN
Has there ever been any damage to the property or structures from fire, earthquake, floods, landslides, hurricanes, tornadoes, wind, lightning, hail or any other disaster(s)?	X		
If Yes, Explain.			
Are you aware of any past or present existence of any elder bugs/brown recluse spiders/bedbugs/termites/carpenter ants or any other destructive/invasive or wood boring insects in or on the property or any damage/infestation caused by same?	X		
If Yes, Explain.			
Have you ever treated the property for insects/infestation?	X		
If Yes, Explain.			
Are you aware of any rodent, bird, reptile or any other pest invasion/nuisance in or on the property surrounds or any damage caused by the same?	X		
If Yes, Explain.			

LOT:	NO	YES	UNKNOWN
Are you aware of any current or pre-existing property soil conditions including but not limited to, landfill, sinkholes, expansive soils, soil movement, fault lines, erosion or settling upon the property or within 500 Ft of your property lot line? If Yes, Explain.	X		
Do you own or lease any Mineral / Gas / Mining rights upon or beneath the surface property? (If yes, please provide the Deed or Lease reflecting such rights)	X		
Royalties received? () Yes () No () Future			
Royalty payout is/shall be () Monthly () Quarterly () Yearly () Non-Producer			
Are you aware of any diseased/dead trees, shrubs or perennials (collectively referred to as landscaping)? If yes, has the diseased/dead landscaping been removed?	X		
Is this property located within a 50 or 100-year old flood plain?	X		
Is your property located within (5) miles of a Toxic Waste Site or Brownfield?	X		
Are you aware of any easements, deed/zoning restrictions or encroachments upon the property whether private or public, recorded or unrecorded? If yes, attach copy of Survey or recorded Agreement of details.	X		
Zoning (Mark All as Applicable): Residential _____ Mixed Use _____ Commercial _____ Historic _____ Agricultural _____ If Mixed Use, Explain			

STRUCTURAL:	NO	YES	UNKNOWN
Either prior to or during your ownership, have there been any known additions, modifications, alterations, repairs or replacements to the property, including but not limited to any drywall, foundation, electrical, fences, retaining walls, pools, decks, barns, gazebos, and outbuildings? If Yes, Explain. screen in porch		X	
If Yes, were all necessary building permits obtained and on record, including but not limited to all construction, plumbing, HVAC or electrical where separately required? (Present physical record owner responsible to confirm.) If Yes, in what County are the permits recorded? Mecklenburg		X	
Either prior to or during your ownership, does this property have actual or suspected Chinese Drywall materials OR offensive, noxious, chemical odors or blackening, pitting or corrosion of any metals within the property or failure of one or more appliances?	X		

If Yes, Explain			
Either prior to or during your ownership, has any property within your Development/HOA/Condo/Townhome/Co-op/Complex have actual or suspected Chinese Drywall materials?	X		
If Yes, Explain			
Either prior to or during your ownership, has the Developer/Builder/HOA been involved with or named in Chinese Drywall litigation or in any legal action at any level?	X		
If Yes, Explain			
Is the exterior siding composed of synthetic stucco, traditional Stucco, Exterior Insulating Finish System (EIFS), ICFS, or other Architectural Hybrid Coatings, or Hardboard siding?	X		
If Yes, which type:			
Is there any known asbestos material present?	X		
If Yes, Explain			
To your knowledge, has the property ever been treated for Asbestos, including removal, remediation or encapsulation?	X		
If Yes, Explain.			
Either before your ownership or during, are you aware of any Mold/Mildew/ (Fungi) on the property?	X		
If Yes, Explain.			
In the course of preparing your property for sale, did you clean up any known or suspected Mold/Mildew (Fungi)?	X		
If Yes, Explain where the Fungi was located, who cleaned the Fungi, the method of cleaning/remediation, and any Reports/Inspections/Invoices obtained.			
ROOF:	NO	YES	UNKNOWN
Either before your ownership or during, are there any known, current or existing leaks, wet spots, backups or other problems with the roof materials?	X		
If Yes, Explain.			
Have there ever been any repairs or replacement made to the roof, sub roof flooring or rafters, whether in whole or in part, as the result of any remodel or known problems in the past Five (5) years?	X		
If Yes, Explain.			
Are there any prior or current known conditions affecting the Chimney(s) or Fireplaces whether internally or externally?	X		

If Yes, Explain.			
What is the roofing material? shingles			
What is the age of the roof/shingles material? 5 years			
Are there existing solar panels on or adjacent to your property structure?	X		
Will all solar panels be included in the sale and convey to Buyer?			
Are the panels leased? If yes, provide a signed copy of the Lease and Warranty.			
Are the panels owned? If yes, provide a signed Purchase Agreement and Warranty.			
MECHANICAL:	NO	YES	UNKNOWN
Are there any known past, current or existing problems with any of the following systems?			
Electrical	X		
If Yes, Explain			
Plumbing	X		
If Yes, Explain			
Heating	X		
If Yes, Explain			
Air Conditioning	X		
If Yes, Explain			
Ventilation/Ductwork	X		
If Yes, Explain			
Does the property contain any knob and tube wiring?	X		
If Yes, Explain			
If existing, does Heating/ Central Air conditioning ductwork go throughout all levels/floors of the property's living areas?		X	
In No, Explain			
WATER SYSTEM	NO	YES	UNKNOWN
Is this property serviced by municipal water?		X	
If No, what is the water supply source?			
Are there any past, known, current or existing leaks, backups, contamination or other problems in or on the property with the water system?	X		
If Yes, Explain			
Does the home contain polybutylene plumbing?	X		

Are you aware of a well on the property? Date of installation:	X		
Is this well Shared?			
If Yes, How many homeowners share?			
If Yes, is the well in working order?			
If not Working, has it been sealed?			
Are you aware of any past or present problems with the water quality (municipal or well water)?	X		
If yes, attach details.			
SEWER SERVICE:	NO	YES	UNKNOWN
Is the property serviced by municipal sewer?			X
If No, what is the date and company of installation of the private septic system?			
If there is a septic system			X
What type of system is utilized? Mound () Leech () Cesspool ()			
Date last pumped			
List dates and describe any known maintenance to the Sewer system, past or present.			
Are there any known, past or current leaks or defects, repaired leaks or defects, backups or other problems in or around the property from the sewer or septic system?	X		
If Yes, Explain.			

UNDERGROUND / ABOVE GROUND STORAGE TANKS (Other than Septic Tanks)	NO	YES	UNKNOWN		
Is there an oil/fuel/chemical tank on the property of any kind?	X				
If Yes, where is it located (marker)? Above () Below ()					
Is the tank presently in use?					
What substance/purpose does the tank contain?					
Has the tank been put out of use permanently? If Yes, provide County tank closure certificate where required.					
Have there been any past or present Leaks whether before or during ownership?					
If Yes, Explain					
Is the tank () single-walled or () or double-walled?					
What is the size of the tank (gallons)?					
When was the tank last filled?					
RADON GAS:	NO	YES	UNKNOWN		
Has the property been tested for Radon gas?			X		
Has a Radon mitigation system been installed?			X		
<i>If the property was tested for Radon gas, attach all available results of all tests known to Seller(s). Tests disclose level of Radon on test day(s) only and no representations are made as to the level of Radon at any time prior to or after the test(s), or to the accuracy of the test(s).</i>					
Have you ever experienced or know of any problems with:	NO	YES		NO	YES
Foundation	X		Drain Tiles	X	
Flooding- If Yes, Location and Explain	X		Cracked floors	X	
Wet walls	X		Cracked walls	X	
Seepage/Dampness	X		Other Leakage	X	
Gutters/Downspouts	X		French Drain	X	
Invasive Tree roots	X		Fire Sprinkler	X	
Toxic Chemical Spill	X		Garage Door	X	
Cracked Driveway/Sidewalks	X		Light fixtures	X	
In-ground/Above ground pool(s)	X		Fireplace(s)	X	
Solar Panels	X				
Provide details describing the extent and nature of any known past, current or present problems with the above whether repaired or not. N/A					

Item	In Working Condition			Item	In Working Condition?		
	Yes	No	N/A		Yes	No	N/A
Air Conditioner – Central	X			Hot Water Heater	X		
Other Air Conditioner – Window – Location?			X	Humidifier Built-in or Standing			X
Barbecue (built-in)			X	Intercom System			X
Shed(s)			X	Microwave (built-in)	X		
Ceiling Fans – Location?	X			Oven / Range	X		
Central Vacuum			X	Sauna			X
Dishwasher	X			Refrigerator (Brand + Location)	X		
Roof/Attic Vent	X			Satellite Dish			X
Electronic Air Purifier			X	Home Satellite Equipment			X
Swing set			X	Smoke Detectors	X		
Fireplace – Location?	X			Sprinkler System	X		
Furnace			X	Sump Pump			X
Garage Door Opener	X			Trash Compactor			X
Garbage Disposal	X			Dryer	X		
Invisible Fencing			X	Washer	X		
Heaters (supplemental)	X			Window Screens	X		
Garage door remotes #			X	Hood-Range/ Vent	X		
Lawn mower(s)			X	Snow blower			X
Wood Burning Stove			X	TV Roof Antenna			X
Central Vacuum			X	Planters			X
Solar Panels			X	Koi Pond			X

Security System	Owned (X)	Rented ()	Included in sale? (X) Yes () No () NA
Water Softener	Owned ()	Rented ()	Included in sale? () Yes () No (X) NA
Hot Tub/Spa	Free Standing ()	Built-in ()	Included in sale? () Yes () No (X) NA
Fuel storage tank	Owned ()	Rented ()	Included in sale? () Yes () No (X) NA
Pool	Above Ground ()	Below Ground ()	Included in sale? () Yes () No (X) NA
List pool equipment to be included in sale and if working:			

MISCELLANEOUS:	NO	YES	UNKNOWN
Are there any other known defects not listed herein that would affect use of property or a buyer's decision to purchase?	X		
If Yes, Explain			

Did you purchase this present property under a Land Contract? If yes, provide a copy of the executed Land Contract.		X	
Are there common areas co-owned in undivided interest with others such as tennis courts, pools, walkways, playgrounds, pavilions, or other?			X
If Yes, Explain.			
Do you own parking space(s) or garage(s)?		X	
If yes, how many? <u>2</u>			
If owned, is (are) your parking space(s) or garage(s) separately deeded?			X
Is (are) your parking space(s) or garage(s) leased? If yes, provide a copy of the lease.			X
Are you aware of any Liens or Encumbrances upon the property other than Home Mortgages whether against you or a past record owner, whether showing on title or not?	X		
Does the property contain any indoor or outdoor surround-sound/audio theater systems ["System"]?	X		
Will this "System" convey in its entirety with the property?			
If NO, please describe in detail which System components will NOT convey with the sale			
Are there any present, past, or pending legal action(s) related to the Property, HOA, Homeowner(s), Developer or Builder or County claims, whether filed or not yet filed of record?	X		
If Yes, Explain.			
Is this Property subject to any Rules, Regulations, and/or By-Laws of any HOA or other Association?		X	
Name: <u>Palisades</u>			
Phone: <u>704.731.5560</u>			
Fee: \$ <u>455.00</u> per () Month (X) Quarterly () Year			
Are there any neighborhood conditions affecting the property such as high tension wires, power plants, train tracks, airline noise, vehicle traffic, schools, dumpsite, landfill, stigmatized property, or commercial businesses?	X		
If Yes, Explain.			

DOCUMENTS / REPORTS:

Provide a copy of all documents that apply to your property and as required for the transfer of property through SIRVA. Please upload any applicable documents in Connect+ and place an X next to each document provided.

	All Building Permits (existing, past, or present)
	Disclosure Statements
	General Inspections
	Homeowner's Association Documents: Conditions, Covenants and Restrictions (CC&R's),

	Articles, By-Laws, Financial Statements, statements regarding any Assessments
	Termite/Pest control warranties or maintenance contracts
	Radon Test
	Septic Test
	Mold Test
	Soil Report
	Structural Inspection Report/Engineering Report All Paid invoices/receipts showing any and all work that may have been completed on the property during your ownership.
	Surveys
	Easement Agreements:
	Lawsuits or other present or pending proceedings affecting Homeowner or property (Divorce, Quitclaims, Bankruptcy, Mechanic's Liens, Trusts, etc.)
	Any violations of HOA, County or other governing authority regulations

SELLER'S STATEMENT

I/we, owner(s) of the above property acknowledge this *Seller's Disclosure Statement* and give permission to SIRVA Relocation LLC/Inc. to disclose this information to any party.

Seller: Tyrone Abel

Date: 3/1/2023

Seller: 

Date: 3/1/2023

The undersigned Buyer acknowledges receipt of the foregoing notice.

Signature of Buyer: DocuSigned by: Michael S kirchoff

Date: Mar 19, 2023 | 1:05 PM CDT

Signature of Buyer: DocuSigned by: Rachel Miskowicz

Date: Mar 19, 2023 | 1:01 PM CDT



**STATE OF NORTH CAROLINA
RESIDENTIAL PROPERTY AND OWNERS' ASSOCIATION DISCLOSURE STATEMENT**

Instructions to Property Owners

1. The Residential Property Disclosure Act (G.S. 47E) ("Disclosure Act") requires owners of residential real estate (single-family homes, individual condominiums, townhouses, and the like, and buildings with up to four dwelling units) to furnish buyers a Residential Property and Owners' Association Disclosure Statement ("Disclosure Statement"). This form is the only one approved for this purpose. A disclosure statement must be furnished in connection with the sale, exchange, option, and sale under a lease with option to purchase where the tenant does not occupy or intend to occupy the dwelling. A disclosure statement is not required for some transactions, including the first sale of a dwelling which has never been inhabited and transactions of residential property made pursuant to a lease with option to purchase where the lessee occupies or intends to occupy the dwelling. For a complete list of exemptions, see G.S. 47E-2.
2. You must respond to each of the questions on the following pages of this form by filling in the requested information or by placing a check (✓) in the appropriate box. In responding to the questions, you are only obligated to disclose information about which you have actual knowledge.
 - a. If you check "Yes" for any question, you must explain your answer and either describe any problem or attach a report from an attorney, engineer, contractor, pest control operator or other expert or public agency describing it. If you attach a report, you will not be liable for any inaccurate or incomplete information contained in it so long as you were not grossly negligent in obtaining or transmitting the information.
 - b. If you check "No," you are stating that you have no actual knowledge of any problem. If you check "No" and you know there is a problem, you may be liable for making an intentional misstatement.
 - c. If you check "No Representation," you are choosing not to disclose the conditions or characteristics of the property, even if you have actual knowledge of them or should have known of them.
 - d. If you check "Yes" or "No" and something happens to the property to make your Disclosure Statement incorrect or inaccurate (for example, the roof begins to leak), you must promptly give the buyer a corrected Disclosure Statement or correct the problem.
3. If you are assisted in the sale of your property by a licensed real estate broker, you are still responsible for completing and delivering the Disclosure Statement to the buyers; and the broker must disclose any material facts about your property which he or she knows or reasonably should know, regardless of your responses on the Disclosure Statement.
4. You must give the completed Disclosure Statement to the buyer no later than the time the buyer makes an offer to purchase your property. If you do not, the buyer can, under certain conditions, cancel any resulting contract (See "Note to Buyers" below). You should give the buyer a copy of the Disclosure Statement containing your signature and keep a copy signed by the buyer for your records.

Note to Buyer: If the owner does not give you a Residential Property and Owners' Association Disclosure Statement by the time you make your offer to purchase the property, you may under certain conditions cancel any resulting contract without penalty to you as the buyer. To cancel the contract, you must personally deliver or mail written notice of your decision to cancel to the owner or the owner's agent within three calendar days following your receipt of the Disclosure Statement, or three calendar days following the date of the contract, whichever occurs first. However, in no event does the Disclosure Act permit you to cancel a contract after settlement of the transaction or (in the case of a sale or exchange) after you have occupied the property, whichever occurs first.

5. In the space below, type or print in ink the address of the property (sufficient to identify it) and your name. Then sign and date.
 Property Address: 17416 Saranita Ln, Charlotte, NC 28278
 Owner's Name(s): Noel Tyrone, Amy Patko

Owner(s) acknowledge(s) having examined this Disclosure Statement before signing and that all information is true and correct as of the date signed.

Owner Signature: [Signature] Date 3/10, 23
 Owner Signature: [Signature] Date 3/10, 23

Buyers acknowledge receipt of a copy of this Disclosure Statement; that they have examined it before signing; that they understand that this is not a warranty by owners or owners' agents; that it is not a substitute for any inspections they may wish to obtain; and that the representations are made by the owners and not the owners' agents or subagents. Buyers are strongly encouraged to obtain their own inspections from a licensed home inspector or other professional. As used herein, words in the plural include the singular, as appropriate.

Buyer Signature: [Signature] Date Mar 21, 2023 | 1:42 AM CDT
 Buyer Signature: Rachel Muskawice Date Mar 21, 2023 | 1:29 AM CDT

Property Address/Description: 17416 Saranita Ln, Charlotte, NC 28278

The following questions address the characteristics and condition of the property identified above about which the owner has actual knowledge. Where the question refers to "dwelling," it is intended to refer to the dwelling unit, or units if more than one, to be conveyed with the property. The term "dwelling unit" refers to any structure intended for human habitation.

- | | Yes | No | Representative |
|--|--------------------------|-------------------------------------|--------------------------|
| 1. In what year was the dwelling constructed? <u>2018</u>
Explain if necessary: _____ | | | ☐ |
| 2. Is there any problem, malfunction or defect with the dwelling's foundation, slab, fireplaces/chimneys, floors, windows (including storm windows and screens), doors, ceilings, interior and exterior walls, attached garage, patio, deck or other structural components including any modifications to them?..... | ☐ | ☒ | ☐ |
| 3. The dwelling's exterior walls are made of what type of material? ☐ Brick Veneer ☐ Wood ☐ Stone
☐ Vinyl ☐ Synthetic Stucco ☒ Composition/Hardboard ☐ Concrete ☐ Fiber Cement ☐ Aluminum ☐ Asbestos
☐ Other _____ (Check all that apply) | | | ☐ |
| 4. In what year was the dwelling's roof covering installed? <u>2018</u> (Approximate if no records are available) Explain if necessary: _____ | | | ☐ |
| 5. Is there any leakage or other problem with the dwelling's roof?..... | ☐ | ☒ | ☐ |
| 6. Is there any water seepage, leakage, dampness or standing water in the dwelling's basement, crawl space, or slab?..... | ☐ | ☒ | ☐ |
| 7. Is there any problem, malfunction or defect with the dwelling's electrical system (outlets, wiring, panel, switches, fixtures, generator, etc.)?..... | ☐ | ☒ | ☐ |
| 8. Is there any problem, malfunction or defect with the dwelling's plumbing system (pipes, fixtures, water heater, etc.)?..... | ☐ | ☒ | ☐ |
| 9. Is there any problem, malfunction or defect with the dwelling's heating and/or air conditioning?..... | ☐ | ☒ | ☐ |
| 10. What is the dwelling's heat source? ☒ Furnace ☐ Heat Pump ☐ Baseboard ☐ Other _____
(Check all that apply) Age of system: <u>2019</u> | | | ☐ |
| 11. What is the dwelling's cooling source? ☒ Central Forced Air ☐ Wall/Window Unit(s) ☐ Other _____
(Check all that apply) Age of system: <u>2012</u> | | | ☐ |
| 12. What are the dwelling's fuel sources? ☒ Electricity ☒ Natural Gas ☐ Propane ☐ Oil ☐ Other _____
(Check all that apply)
If the fuel source is stored in a tank, identify whether the tank is ☐ above ground or ☐ below ground, and whether the tank is ☐ leased by seller or ☐ owned by seller. (Check all that apply) | | | ☐ |
| 13. What is the dwelling's water supply source? ☒ City/County ☐ Community System ☐ Private Well ☐ Shared Well ☐ Other _____
(Check all that apply)..... | | | ☐ |
| 14. The dwelling's water pipes are made of what type of material? ☐ Copper ☐ Galvanized ☐ Plastic ☐ Polybutylene
☐ Other _____ (Check all that apply)..... | | | ☐ |
| 15. Is there any problem, malfunction or defect with the dwelling's water supply (including water quality, quantity, or water pressure)?..... | ☐ | ☒ | ☐ |
| 16. What is the dwelling's sewage disposal system? ☐ Septic Tank ☐ Septic Tank with Pump ☐ Community System ☐ Connected to City/County System ☐ City/County System available ☐ Straight pipe (wastewater does not go into a septic or other sewer system (note: use of this type of system violates state law))
☐ Other _____ (Check all that apply)..... | | | ☐ |
| 17. If the dwelling is serviced by a septic system, do you know how many bedrooms are allowed by the septic system permit?
If your answer is "yes," how many bedrooms are allowed? _____ ☐ No records available | ☐ | ☒ | ☐ |
| 18. Is there any problem, malfunction or defect with the dwelling's sewer and/or septic system?..... | ☐ | ☒ | ☐ |
| 19. Is there any problem, malfunction or defect with the dwelling's central vacuum, pool, hot tub, spa, attic fan, exhaust fan, ceiling fans, sump pump, irrigation system, TV cable wiring or satellite dish, garage door openers, gas logs, or other systems?..... | ☐ | ☒ | ☐ |
| 20. Is there any problem, malfunction or defect with any appliances that may be included in the conveyance (range/oven, attached microwave, hood/fan, dishwasher, disposal, etc.)?..... | ☐ | ☒ | ☐ |

Buyer Initials and Date RM DS Mar 21, 2023 | 1:29 AM CDT
 Buyer Initials and Date MSK Mar 21, 2023 | 1:42 AM CDT
 Owner Initials and Date 2277
 Owner Initials and Date AB

- | | Yes | No | Representation |
|--|--------------------------|-------------------------------------|--------------------------|
| 21. Is there any problem with present infestation of the dwelling, or damage from past infestation of wood destroying insects or organisms which has not been repaired?..... | ☐ | ☒ | ☐ |
| 22. Is there any problem, malfunction or defect with the drainage, grading or soil stability of the property?..... | ☐ | ☒ | ☐ |
| 23. Are there any structural additions or other structural or mechanical changes to the dwelling(s) to be conveyed with the property?..... | ☐ | ☒ | ☐ |
| 24. Is the property to be conveyed in violation of any local zoning ordinances, restrictive covenants, or other land-use restrictions, or building codes (including the failure to obtain proper permits for room additions or other changes/improvements)?..... | ☐ | ☒ | ☐ |
| 25. Are there any hazardous or toxic substances, materials, or products (such as asbestos, formaldehyde, radon gas, methane gas, lead-based paint) which exceed government safety standards, any debris (whether buried or covered) or underground storage tanks, or any environmentally hazardous conditions (such as contaminated soil or water, or other environmental contamination) located on or which otherwise affect the property?..... | ☐ | ☒ | ☐ |
| 26. Is there any noise, odor, smoke, etc. from commercial, industrial, or military sources which affects the property? | ☐ | ☒ | ☐ |
| 27. Is the property subject to any utility or other easements, shared driveways, party walls or encroachments from or on adjacent property?..... | ☐ | ☒ | ☐ |
| 28. Is the property the subject of any lawsuits, foreclosures, bankruptcy, leases or rental agreements, judgments, tax liens, proposed assessments, mechanics' liens, materialmen's liens, or notices from any governmental agency that could affect title to the property?..... | ☐ | ☒ | ☐ |
| 29. Is the property subject to a flood hazard or is the property located in a federally-designated flood hazard area? | ☐ | ☒ | ☐ |
| 30. Does the property abut or adjoin any private road(s) or street(s)?..... | ☐ | ☒ | ☐ |
| 31. If there is a private road or street adjoining the property, is there in existence any owners' association or maintenance agreements dealing with the maintenance of the road or street?..... | ☐ | ☒ | ☐ |

If you answered "yes" to any of the questions listed above (1-31) please explain (attach additional sheets if necessary):

In lieu of providing a written explanation, you may attach a written report to this Disclosure Statement by a public agency, or by an attorney, engineer, land surveyor, geologist, pest control operator, contractor, home inspector, or other expert, dealing with matters within the scope of that public agency's functions or the expert's license or expertise.

The following questions pertain to the property identified above, including the lot to be conveyed and any dwelling unit(s), sheds, detached garages, or other buildings located thereon.

- | | Yes | No | Representation |
|--|--------------------------|-------------------------------------|--------------------------|
| 32. Is the property subject to governing documents which impose various mandatory covenants, conditions, and restrictions upon the lot or unit?..... | ☐ | ☒ | ☐ |
- If you answered "yes" to the question above, please explain (attach additional sheets if necessary):

33. Is the property subject to regulation by one or more owners' association(s) including, but not limited to, obligations to pay regular assessments or dues and special assessments? If you answer is "yes," please provide the information requested below as to each owners' association to which the property is subject (insert N/A into any blank that does not apply):

• (specify name) _____ whose regular assessments ("dues") are \$ _____ per _____. The name, address and telephone number of the president of the owners' association or the association manager are _____

• (specify name) _____ whose regular assessments ("dues") are \$ _____ per _____. The name, address and telephone number of the president of the owners' association or the association manager are _____

Buyer Initials and Date

Mar 21, 2023 | 1:29 AM CDT

Owner Initials and Date

Buyer Initials and Date

Mar 21, 2023 | 1:42 AM CDT

Owner Initials and Date

*If you answered "Yes" to question 33 above, you must complete the remainder of this Disclosure Statement. If you answered "No" or "No Representation" to question 33 above, you do not need to answer the remaining questions on this Disclosure Statement. Skip to the bottom of the last page and initial and date the page.

- | | Yes | No | No Representation |
|--|-------------------------------------|-------------------------------------|--------------------------|
| 34. Are any fees charged by the association or by the association's management company in connection with the conveyance or transfer of the lot or property to a new owner? If your answer is "yes," please state the amount of the fees: _____ | ☐ | ☒ | ☐ |
| 35. As of the date this Disclosure Statement is signed, are there any dues, fees, or special assessments which have been duly approved as required by the applicable declaration or bylaws, and that are payable to an association to which the lot is subject? If your answer is "yes," please state the nature and amount of the dues, fees, or special assessments to which the property is subject: _____ | ☐ | ☒ | ☐ |
| 36. As of the date this Disclosure Statement is signed, are there any unsatisfied judgments against, or pending lawsuits involving the property or lot to be conveyed? If your answer is "yes," please state the nature of each pending lawsuit, and the amount of each unsatisfied judgment: _____ | ☐ | ☒ | ☐ |
| 37. As of the date this Disclosure Statement is signed, are there any unsatisfied judgments against, or pending lawsuits involving the planned community or the association to which the property and lot are subject, with the exception of any action filed by the association for the collection of delinquent assessments on lots other than the property and lot to be conveyed? If your answer is "yes," please state the nature of each pending lawsuit, and the amount of each unsatisfied judgment: _____ | ☐ | ☒ | ☐ |
| 38. Which of the following services and amenities are paid for by the owners' association(s) identified above out of the association's regular assessments ("dues")? (Check all that apply). | Yes | No | No Representation |
| Management Fees..... | ☒ | ☐ | ☐ |
| Exterior Building Maintenance of Property to be Conveyed..... | ☐ | ☒ | ☐ |
| Master Insurance..... | ☐ | ☒ | ☐ |
| Exterior Yard/Landscaping Maintenance of Lot to be Conveyed..... | ☐ | ☒ | ☐ |
| Common Areas Maintenance..... | ☒ | ☐ | ☐ |
| Trash Removal..... | ☐ | ☒ | ☐ |
| Recreational Amenity Maintenance (specify amenities covered) _____ | ☒ | ☐ | ☐ |
| Pest Treatment/Extermination..... | ☐ | ☒ | ☐ |
| Street Lights..... | ☒ | ☐ | ☐ |
| Water..... | ☐ | ☒ | ☐ |
| Sewer..... | ☐ | ☒ | ☐ |
| Storm water Management/Drainage/Ponds..... | ☐ | ☒ | ☐ |
| Internet Service..... | ☐ | ☒ | ☐ |
| Cable..... | ☐ | ☒ | ☐ |
| Private Road Maintenance..... | ☒ | ☐ | ☐ |
| Parking Area Maintenance..... | ☐ | ☒ | ☐ |
| Gate and/or Security..... | ☒ | ☐ | ☐ |
| Other: (specify) _____ | ☐ | ☐ | ☐ |

Buyer Initials and Date	DS RM MSK	Mar 21, 2023 1:29 AM CDT	Owner Initials and Date	23M
Buyer Initials and Date		Mar 21, 2023 1:42 AM CDT	Owner Initials and Date	AR



STATE OF NORTH CAROLINA MINERAL AND OIL AND GAS RIGHTS MANDATORY DISCLOSURE STATEMENT

Instructions to Property Owners

- The Residential Property Disclosure Act (G.S. 47E) ("Disclosure Act") requires owners of certain residential real estate such as single-family homes, individual condominiums, townhouses, and the like, and buildings with up to four dwelling units, to furnish purchasers a Mineral and Oil and Gas Rights Disclosure Statement ("Disclosure Statement"). This form is the only one approved for this purpose.
- A disclosure statement is not required for some transactions. For a complete list of exemptions, see G.S. 47E-2(a). **A DISCLOSURE STATEMENT IS REQUIRED FOR THE TRANSFERS IDENTIFIED IN G.S. 47E-2(b)**, including transfers involving the first sale of a dwelling never inhabited, lease with option to purchase contracts where the lessee occupies or intends to occupy the dwelling, and transfers between parties when both parties agree not to provide the Residential Property and Owner's Association Disclosure Statement.
- You must respond to each of the following by placing a check ☒ in the appropriate box.

MINERAL AND OIL AND GAS RIGHTS DISCLOSURE

Mineral rights and/or oil and gas rights can be severed from the title to real property by conveyance (deed) of the mineral rights and/or oil and gas rights from the owner or by reservation of the mineral rights and/or oil and gas rights by the owner. If mineral rights and/or oil and gas rights are or will be severed from the property, the owner of those rights may have the perpetual right to drill, mine, explore, and remove any of the subsurface mineral and/or oil or gas resources on or from the property either directly from the surface of the property or from a nearby location. With regard to the severance of mineral rights and/or oil and gas rights, Seller makes the following disclosures:

	Yes	No	No Representation
1. Mineral rights were severed from the property by a previous owner.	☐	☐	☒
2. Seller has severed the mineral rights from the property.	☐	☒	
3. Seller intends to sever the mineral rights from the property prior to transfer of title to the Buyer.	☐	☒	
4. Oil and gas rights were severed from the property by a previous owner.	☐	☐	☒
5. Seller has severed the oil and gas rights from the property.	☐	☒	
6. Seller intends to sever the oil and gas rights from the property prior to transfer of title to Buyer.	☐	☒	

Note to Purchasers

If the owner does not give you a Mineral and Oil and Gas Rights Disclosure Statement by the time you make your offer to purchase the property, or exercise an option to purchase the property pursuant to a lease with an option to purchase, you may under certain conditions cancel any resulting contract without penalty to you as the purchaser. To cancel the contract, you must personally deliver or mail written notice of your decision to cancel to the owner or the owner's agent within three calendar days following your receipt of this Disclosure Statement, or three calendar days following the date of the contract, whichever occurs first. However, in no event does the Disclosure Act permit you to cancel a contract after settlement of the transaction or (in the case of a sale or exchange) after you have occupied the property, whichever occurs first.

Property Address: 17416 Saranita Ln, Charlotte, NC 28278

Owner's Name(s): Moel Tyrone, Amy Petko

Owner(s) acknowledge having examined this Disclosure Statement before signing and that all information is true and correct as of the date signed.

Owner Signature: [Signature] Date 3/10/23

Owner Signature: [Signature] Date 3/10/23

Purchaser(s) acknowledge receipt of a copy of this Disclosure Statement; that they have examined it before signing; that they understand that this is not a warranty by owner or owner's agent; and that the representations are made by the owner and not the owner's agent(s) or subagent(s).

Purchaser Signature: Rachael Miskowicz Date Mar 19, 2023 | 1:02 PM CDT

Purchaser Signature: Michael S. Kirchoff Date Mar 19, 2023 | 1:07 PM CDT



One Parkview Plaza, Oakbrook Terrace, IL 60181; 630-570-3047; SIRVA.com

This is to give you notice that the referring party has a business relationship with other settlement services.

The following Settlement Services providers all have common ownership. Because of this relationship, a referral by any one of these parties may provide that referring party a financial or other benefit. *

SIRVA Mortgage, Inc. (Mortgage Lender)

DJK Residential, LLC (Real Estate Broker)

SIRVA Settlement, Inc. (Title Agent)

SIRVA Relocation LLC (Real Estate Broker)

SIRVA Settlement of Alabama, Inc. (Title Agent)

Each member of the SIRVA group of companies has a beneficial relationship with the other companies as they all have common ownership. Because of this relationship, your use of any of these affiliated companies may provide the particular SIRVA Company that you are initially working with a financial or other benefit. For example if you are currently working with DJK Residential and they refer you to SIRVA Mortgage, Inc., DJK may receive a benefit due to the common ownership of the companies. **

Set forth below is the estimated charge or range of charges for the settlement services listed. You are ***NOT*** required to use the listed providers as a condition for settlement of your loan, a refinance of your loan, the purchase or sale of your property, or obtaining title insurance of the subject property.

THERE ARE FREQUENTLY OTHER SETTLEMENT SERVICE PROVIDERS AVAILABLE WITH SIMILAR SERVICES. YOU ARE FREE TO SHOP AROUND TO DETERMINE THAT YOU ARE RECEIVING THE BEST SERVICES AND THE BEST RATE FOR THESE SERVICES.

Mortgage Lending Services: **SIRVA Mortgage, Inc.**

Possible loan origination fees and related charges: Generally, .5%-2% of your home value. Fees may include: Application Fee, Tax Service Fee, Underwriting Fee, Commitment Fee, Lender's Attorney Fee, Escrow Waiver Fee, Origination Charge and/or Discount Points (fees as applicable and where permitted by law).

Real Estate Services: **DJK Residential, LLC**

Real Estate Broker Commissions for home or condominium sales are always negotiable, but usually run between 4%-7% of home or condominium value and are generally paid by the Seller. Commissions for brokerage services for rental properties are generally 10%-12% of the first year's rent and are paid by the Lessee.

Real Estate Services: **SIRVA Relocation LLC**

Provides real estate referral services to licensed real estate brokers and agents through its real estate services, property management services and corporate housing divisions.

Title Agency/Closing Services: **SIRVA Settlement, Inc.; SIRVA Settlement, Inc. of Alabama**

Possible title-related fees: Generally, 1% of home value. Fees may include: Title Search Fee, Title Review Fee, Attorney's Fees, Commitment Fee, Escrow Fee, and Closing Service Fee.

ACKNOWLEDGMENT

I/we have read this disclosure form and understand that a SIRVA Company may be referring me/us to purchase one or more of the above described settlement service(s) and may receive a financial or other benefit as the result of this referral.

Michael S Kirchoff

Rec'd Date

Rachel Miskowicz

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Mar 21, 2023 | 1:45 AM CDT
(Date)

Mar 21, 2023 | 1:25 AM CDT
(Date)

*SIRVA also has other affiliated companies, including Allied Van Lines® and NorthAmerican® Van Lines, that are not directly involved in the mortgage, real estate brokerage or Title Agency/Closing Services.

** Not all of the affiliates and their services may be applicable to you depending on the State in which your home is located and, if applicable, your company's relocation policy or whether the buyer or seller in a home sale transaction selects the title Agent.



INDOOR AIR QUALITY DISCLAIMER

GENERAL BACKGROUND ON INDOOR AIR QUALITY

In the last several years, a growing body of scientific evidence has indicated that the air within homes and other buildings can be more seriously polluted than the outdoor air in even the largest and most industrialized cities. Other research indicates that people spend approximately 90 percent of their time indoors. Thus, for many people, the risks to health may be greater due to exposure to air pollution indoors than outdoors.

In addition, people who may be exposed to indoor air pollutants for the longest periods of time are often those most susceptible to the effects of indoor air pollution. Such groups include the young, the elderly, and the chronically ill, especially those suffering from respiratory or cardiovascular disease.

While pollutant levels from individual sources may not pose a significant health risk by themselves, most homes have more than one source that contributes to indoor air pollution. There can be a serious risk from the cumulative effects of these sources. Fortunately, there are steps that most people can take both to reduce the risk from existing sources and to prevent new problems from occurring.

The U.S. Environmental Protection Agency (EPA) and the U.S. Consumer Product Safety Commission (CPSC) produce a popular and comprehensive publication on the subject of Indoor Air Quality entitled *The Inside Story: A Guide to Indoor Air Quality*. It describes sources of air pollution in the home and office, corrective strategies, and specific measures for reducing pollutant levels. This illustrated booklet covers all major sources of pollution such as biological contaminants (including bacteria, molds, mildew, viruses, animal dander and cat saliva, house dust mites, cockroaches, and pollen), radon, household chemicals, carbon monoxide, formaldehyde, pesticides, asbestos, and lead.

SIRVA Relocation advises homebuyers and homeowners to research Indoor Air Quality issues through resources available at the federal, state and/or local government levels. The EPA website at www.epa.gov is an informative resource for information on Indoor Air Quality. For individuals without access to the Internet, federal agencies with Indoor Air Quality information include the EPA's Indoor Air Quality Information Clearinghouse (IAQ INFO) at P.O. Box 37133, Washington, DC, 20013-7133; (800) 438-4318; (703) 356-4020. Single copies of *The Inside Story: A Guide to Indoor Air Quality* are available from EPA's IAQ Information Clearinghouse or by visiting the EPA website at www.epa.gov/iaq/pubs/ (the website is recommended for the most up-to-date scientific and technical information).

Questions or concerns about Indoor Air Quality issues can also be answered by a variety of state or local government agencies. Calling or writing the agencies responsible for health or air quality control is the best way to start getting information from a state or local government agency. To obtain state agency contacts, individuals can write, call or visit EPA's IAQ Information Clearinghouse.

NO INDOOR AIR QUALITY SERVICES PERFORMED

Unless otherwise noted, no services have been performed at the Property referenced below to determine Indoor Air Quality levels or to assess potential health effects from the possible presence of indoor air pollutants. Where certain Indoor Air Quality services have been performed at the Property (for example, radon testing), such services are exclusively limited to the indoor air pollutant identified and tested. Otherwise, Indoor Air Quality issues have not been addressed in a comprehensive manner, and where they have been addressed, it has been done for general informational purposes only.

Homeowners and homebuyers are advised that services customarily rendered in connection with real estate transactions (for example, General Home Inspection and/or Property Condition Assessment services; Appraisals; Broker Opinions or Market Analyses; Mortgage Lending and Title Services; Corporate Relocation facilitation services; REALTOR® services; etc.) do not encompass comprehensive testing, analysis or evaluation of Indoor Air Quality, or specific recommendations related to Indoor Air Quality.

Homeowners or homebuyers that desire comprehensive Indoor Air Quality testing or investigative services are advised to consult with contractors or professionals of their choice to ascertain the condition of the property and/or to remediate Indoor Air Quality concerns. The EPA advises the general public to check the references of outside contractors or professionals and to make certain they follow recommendations published by the EPA, the guidelines of the American Conference of Government Industrial Hygienists (ACGIH), and/or guidelines from other professional organizations.

Buyer's Initials

DS
MSK RM

Mar 19, 2023 | 2:37 PM CDT



Privacy Policy

SIRVA respects your privacy. This Privacy Policy is intended to inform you of how we protect your information.

One Policy

SIRVA has one global Privacy Policy for consumers applying to the entire SIRVA family of companies ("SIRVA"). SIRVA is committed to complying with all local and worldwide privacy laws.

Information Covered by this Policy

Our Policy covers all non-public, personal information received by us that may be used to identify you ("Personal Information").

How We Obtain Personal Information

We rely on many sources of information to understand and meet your needs. We may receive personal information about you from:

- You directly, when you complete an application or when you visit us in person, over the phone, through the mail or through our websites;
- Your transactions with any of the companies in the SIRVA family;
- Consumer reporting agencies;
- Mortgage, Title, appraisal or other companies connected with a financial product or service involved in the sale or purchase of your home;
- Your employer;
- Anyone who you have authorized to provide information; and
- Other sources, in connection with providing you a financial product or service.

Although we do not receive personally identifiable information from your browser, we monitor and store certain types of information about visitors to our website--namely, the type of browser used, their country, whether they were referred to us by a search engine, which of our pages they visit, and how those pages perform on their computer. This helps SIRVA make decisions on how to better design, streamline, and improve performance on our websites. If you do not want this information monitored, you may turn off JavaScript. Please be advised, however, that the websites may not provide full functionality if those settings are turned off.

We also use "cookie" technology to improve your experience on our site. For details on our cookie policy, please see our website.

We do not knowingly collect Personal Information from children and will destroy such information if it is disclosed to us without proper parental consent.

Information Sharing within the SIRVA Family of Companies

To provide you with the full range of financial, relocation, and moving services you may need, SIRVA takes an integrated approach to the services we provide. In order to be able to provide a full range of services for

your needs and make recommendations about a variety of the services offered by SIRVA, we may share Personal Information among the SIRVA family of companies.

Information Sharing with non-SIRVA Family Companies

Depending on the type of services you are to receive, SIRVA may work with and provide your information to companies or persons outside of the SIRVA family to provide those services to you. For example, SIRVA may share personal information to:

- service and support our operations generally and to support your account and services that we provide to you, including proposed or actual financing, securitization, secondary market sale, or similar transactions.
- process or administer a transaction or product in connection with a product or transaction that you have requested;
- data storage and processing;
- those you have authorized us to disclose the information;
- other suppliers with whom we have agreements to offer services to you through or with SIRVA;
- other suppliers with which we jointly market or provide products or services.

We may also share your Personal Information with these other organizations outside of the SIRVA family when required by law. For example, we may share personal information to:

- protect against fraud;
- respond to a subpoena or summons; or
- respond to law enforcement or regulatory authorities.

We will not disclose your Personal Information to anyone outside of SIRVA unless you have authorized us to do so or as otherwise indicated in this Policy or as required by law.

We maintain agreements with our external suppliers limiting the use of your Personal Information only for the purposes you have intended in providing the information. These suppliers are bound to uphold our standards and procedures regarding privacy under the terms of our agreements with them.

Access & Choice

SIRVA provides you with a reasonable opportunity to access your own Personal Information, to correct that information if inaccurate, or to have it deleted as appropriate—subject to the exceptions stated below. Reasonable access means, for example, that requests for access are made during normal business hours; that you provide requested identification; and that requests are not excessive in number. If, at any time, SIRVA denies you access to any Personal Information, we will provide you with reasons for denying access and information about how you may make further inquiries. For instance, SIRVA reserves the right to deny access to information related to investigations or potential or actual litigation where the burden or expense of providing access would be disproportionate to the risks to the individual's privacy, or where the rights of other individuals would be violated. In order to update your information, please send your request by electronic mail to privacy.administrator@sirva.com, by facsimile to the number (216) 606-7654, or by telephone to the number (216) 606-7912.

You have the right to opt out of any use of your Personal Information at any time. If you opt out of this policy it may affect your receipt of services.

Data Integrity & Security

SIRVA will make every reasonable effort to keep Personal Information accurate while we are using that information to serve you. SIRVA appreciates your cooperation in maintaining complete and up-to-date Personal Information and will facilitate your efforts in this regard. SIRVA retains Personal Information for as long as we have determined it is needed for the purposes for which it was received or as required by contractual, record keeping or other legal requirements.

We limit access to personal information about you to those employees who need to know that information to provide products and services to you. We do not sell your personal information.

We maintain physical, electronic, and procedural safeguards to protect your Personal Information. We regularly assess security standards and procedures to protect against unauthorized access to Personal Information.

We store your data on servers that may be located in various countries, but always in compliance with this policy and all applicable data privacy laws and regulations.

You should always safeguard your own Personal Information by protecting passwords used to access a SIRVA system and by safely disposing of records and reports no longer needed.

SIRVA will notify and work with regulatory and/or law enforcement officials as required by law to address any issues or security breaches where they arise.

Enforcement

A. Verification

Employee training and internal procedures are in place to allow SIRVA to ensure compliance with its Privacy Policy. SIRVA provides for regular internal compliance reviews of its privacy practices, and a SIRVA has a Privacy Office that is responsible for privacy implementation and compliance. For assistance with privacy concerns, you may send comments by electronic mail to privacy.administrator@sirva.com, by facsimile to the number (216) 606-7654, or by telephone at (216) 606-7912.

B. Dispute Resolution

SIRVA recognizes the importance of providing you the opportunity to address and resolve complaints about the processing of your Personal Information. Therefore, in addition to any legal remedies that may be available, if you make a complaint with us about the processing of your Personal Information and it is not resolved to your satisfaction internally at SIRVA, you may also file a complaint with the American Arbitration Association ("AAA") at the AAA website, located here, or seek its independent alternative dispute resolution services. The American Arbitration Association ("AAA") is also located at the following address:

225 North Michigan Avenue, Suite 2527
Chicago, Illinois 60601-7601 USA

The AAA can be reached by telephone at (312) 616-6560 or by facsimile at (312) 819-0404.

DocuSigned by:
Michael S Kirchhoff Mar 19, 2023 | 1:08 PM CDT
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DocuSigned by:
Rachel Miskowicz Mar 19, 2023 | 1:04 PM CDT
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